

Chapter 1

INTRODUCTION TO RELIGION

What is religion? How is it defined? How the people with different thoughts, regions and religions interpret it? When, why and how did it start? Why do people follow it? Why do we need it? All these and many other similar questions lead us to this discussion in order to find answers before starting the religious studies.

Etymology:

Religion, derived from old French word "Religiun" means "Respect for what is sacred" or Latin word "Religionem" means "Reverence for the gods".

Modern Sense: "Recognition of, and obedience to a higher unseen power". Words "Creed", "Cult" & "Faith" are used as synonyms.

In Urdu, we use word "Mazhab مذہب" which is originally an Arabic word means "A way to go", "A path to walk", "A style", "A method" etc.

In Arabic, in the sense of religion, the word "Deen دين" is used commonly which literally means "Retaliation", "Recompense", "Requital", "Commandment", & "Judgment" etc, for example, Qur'an says "مَالِكِ يَوْمِ الدِّينِThe Master of the Day of Judgment".

Word Religion in Qur'an:

The most appropriate of the above mentioned Arabic words in the sense of religion, is "Deen". Although, Qur'an uses some other words as well in this sense like "مِلَّةٌ...Millah", "صِرَاطٌ...Siraat", "مِنْهَاجٌ...Minhaaj", & "شِرْعَةٌ...Shir'ah", but the word preferred and used most often in the divine guidance i.e. Qur'an and Hadith, it is "Deen دين" as it indicates to the requital and the recompense of the deeds in after life. The word "Mazhab مذہب" has not been used anywhere in divine scripture in the sense of religion as it does not express the exact sense of religion except in Urdu, instead, it is used for "Point of view" & "School of thought".

Definitions & Concepts:

People from various areas, eras and thoughts have interpreted religion in different ways in the light of their own knowledge and experiences. Here are some of the opinions of western scholars and philosophers along with the Islamic perspective to get an idea about different views and attitudes towards religion.

Edward Burnett Tylor 1832-1917 (defines in his book "Primitive Culture")

"The belief in spiritual being"

David Emile Durkheim 1858-1917 (writes in his book "The Elementary Forms of the Religious Life")

"Unified system of beliefs and practices relative to sacred things"

William James 1842-1910 (describes in his book "The Varieties of Religious Experiences")

"The feelings, acts and experiences of individual men in their solitude, whatever they may consider the divine."

The crux of the western ideas is that the Religion to them is "A relationship to sacred & spiritual things, feelings in solitude & experiences of individuals."

Divine Perspective: (Eastern Perspective)

"Religion is a complete code of life set and sent down by the Creator, the Lord (God) through His messengers from time to time to guide His slaves (Mankind & Jinn) to the success in life and afterlife".

Analysis:

By a look upon all these view points, few facts are unveiled that.... Western scholars, however, interpret religion as it is something related to thought only, not stressing upon the practical aspect of the religion. This attitude can easily be observed in the western society as they dislike the interference of religion into their daily lives as well as in economical and political bodies. Secondly, their interpretation shows that religion to them is a personal matter of every individual, because people are different in their thoughts and association with spiritual & sacred beings. This approach can also be observed in the western society particularly in modern era. On the other hand, it appears that religion to divine perspective is more practical than it is theoretical as it is a complete code of life and almost 90% of Islamic teachings are practice based. Besides, it is a collective and inter-related issue more than it is a personal matter because success in worldly life cannot be considered without collectiveness.

Need for Religion:

Religion is an essential need of mankind as it gives meanings to the essence of life, creates objective of existence and establishes the core of mankind. This conversation requires further elaboration on these aspects.

Demand of Nature:

This is mentionable that liberty and freedom have ever been fascinated and desired for human beings and the fact is that man, on account of his natural desire, prefers liberation and emancipation over all kinds of confinements and limitations which are the core of the religion, besides, on ground reality demonstrates that almost 80-85 % of the world population is affiliated to some religion preferring restrictions and confinement set by the religion over emancipation and freedom which is astonishing for man himself. This enigma is uncomplicated to solve.

In fact, association with some religion is the demand of the innate human nature man has been created with. Nature refers to an essential feature or characteristic of something by which that particular object is recognized and known. In case, if this feature is removed, that particular object remains not the same object any more. For instance, water is recognized and known for its liquidity and flow, if this feature is removed, it might be called as ice but not water any more.

In the same way, man is created with a proviso to be bound to believe in some unseen super natural power. No matter if man recognizes him or not, because it is experienced more than once and proved that one decides and determines for some task and struggles hard to achieve the goal, one eventually fails despite all his determinations. Besides, suffering from undesired diseases, mishaps, demises and disasters demonstrate even compel man to believe in some other contradictive powerful being existing as dominant and more influential than man himself. Man, on account of his nature, is frightened that this power may cause to harm or destruct him in case

if gets angry with man. As an end result, man yields to that power to secure himself from any expected or unexpected failure and mischief and to collect maximum benefits and advantages. It is thus the religion takes birth and it is only the belief in God which can give security to the self and mind, peace to the soul, meaning to the individual and the satisfaction to the human nature.

The Innate Human Nature:

The word "Innate" refers to built in essential human features. Man has been created with an innate nature that compels him to believe in an unseen super natural power as God. Qur'an reveals about an incident that occurred in Heaven before Adam (AS) was sent to earth which is identified as "The Initial Covenant". As per the details described by the Holy Prophet (pbuh), Allah, the Exalted, created all of the human souls from Adam (AS) and presented Himself to them and questioned them, "Am I not your Lord?" They all replied, "Why not" which means they all agreed upon it. This covenant has been set as the innate nature of the human beings by Almighty Allah. This is the nature termed as "Fitrah" in Qur'an and everyone takes birth with same "Fitrah" that leads to the acceptance of the Ultimate Reality "God".

Craves of Mind for the Knowledge of Essential Facts:

The human need for a creed primarily derives from man's crave to know himself and the universe around him. The need to find answers has always occupied the concern of human philosophies without reaching the definite solutions. Since their creation, people have had the nagging questions "From where?", "To where?" and why?" They are sometimes distracted by the demands of daily life, but they one day return to these eternal questions. Man wonders: from where did I and this immeasurable universe come? Did I come into existence on my own or is there a creator who brought me to existence? Who is he? How am I related to him? What about this vast land, sky, animal, vegetable, mineral, planets and stars? Did they come into existence on their own or is there some sovereign creator? What is after this life? What is after death? Where do we go after the short journey on this planet Earth? Does the story of life from birth to death have nothing beyond that? Do the virtuous who sacrifice their lives for good and truth meet the same end as the wicked and villainous who sacrifice others for their own desires and pleasure? Does life culminate only in death? Or is there some other life after death in which the virtuous are rewarded and the villainous are punished? And why was mankind brought into existence? Why were people endowed with mind, wisdom, knowledge and volition which distinguish them from all animals? Why does everything in heaven and on earth seem to be in his service? Is there a purpose to his existence? Does he have a mission in life? Or was he brought into existence only to eat as animals do and then expire as animals do? If there is a purpose to existence, what is it? How can this purpose be realized?

These questions have haunted man in every age and demanded answers that satisfy the intellect and soothe the heart. Answers like that are only found in religion or in a pure religious belief. It is religion that primarily teaches man that he came into existence neither by chance nor on his own but he was created by a great Creator Who is his God, That God made man, fashioned him perfectly, gave him due proportion, breathed soul into him, endowed him with hearing, eyesight, mind and heart and granted him all sorts of blessings starting as an embryo in a mother's womb.

History & Background:

Through the history of religions, we come to know that religion has ever been the essential part of human life in every society. The Greek historian Plutarch (46-120 AD) writes, "In history, I have found cities without forts, cities without palaces, cities without schools, but never have I found cities without places of worship". For history of religion, we find archaeological evidences as well; likewise tablets of law by Hammurabi (2300 BC), a king of Babylon lived in Nineveh, the capital of Babylon, almost in the age of Ibrahim (AS). These tablets describe the laws containing some clauses derived from the divine teachings. Moreover, the ancient cemeteries like tombs & pyramids provide the big evidence for religion, because, burial itself, is the teaching of religion taught to mankind through the crows as per the revelation of Qur'an.

But, when and how did it start actually, history is silent and provides no definite answer. But, the divine scriptures like Qur'an & Bible reveal it well that the religion started with the very first person on this earth named Adam (AS).

Universal Features of Religions:

A large number of religions existing in the world are having a massive variety of thoughts and teachings, but some fundamental features are considered as universal and common between all of them, these are following....

- 1- **Faith & Beliefs:** All of the existing religions have the teachings consisting of thoughts called as beliefs. Although, these beliefs vary religion to religion in details, but are common being a theoretical part.
- 2- **Rituals & Customs:** All the religions hold some practical rituals being followed by the followers which later become the identification of that particular religion. This is the second feature common between all of the religions whether they are revealed or non-revealed. But, likewise beliefs, these rituals also vary religion to religion.
- 3- **Ethics & Morality:** All of the religions form their own concepts of good & evil and the curbs of ethical and moral values derived from their own thoughts and rituals. Although, some of the moral values are universal like speaking truth, not telling a lie and not killing the innocent one, but some may vary in various religions. This is very much possible that one value might be considered good in one religion but might not be in the other one.

Religion & Human life:

There is no second opinion in the fact that religion has ever been very influential and put a great impact on humanity, their personal as well as their collective life. Man, being follower of a religion, lives a satisfactory life as he thinks that he has established an awesome relationship with the sacred super natural power that is dominant and holding the authority to benedict or destruct the human life. Besides, man needs psychological peace and spiritual strength occasionally and also needs a mighty and unfailing supporter at times of hardship and crisis. This is religion that holds man's life, hope and courage, when a person loses something or someone he loves, or fails to achieve something, or is stricken by misfortune and illness. The religious faith provides him support, strength, hope, condolence and patience.

Religion also affects the collective life of mankind. In fact, the societies are always established on the basis of religion and form their own civilizations and cultures. All the world's great civilizations are known by their religion like the Buddha civilization, the Hindu culture and civilization and the Muslim civilization are named after their religions. Moreover, the religion

controls and governs the relationships between society members and makes every member observe his limits, refrain from trespassing the rights of others and not to overlook the welfare of the community for personal immediate gains.

Classification of Religions:

There are almost nine thousands religions including the tribal religions existing in the world. These religions have been classified into two major categories, Revealed & Non-revealed. Revealed refers to the claim by the followers in order to have some divine scripture for human guidance. Judaism, Christianity and Islam are considered as the revealed religions. Rest of the religions have been declared as non-revealed religions as they do not claim to have the divine scripture despite they have some sacred and holy books.

Theological Ideas:

Theology is the systematic and rational study of concepts of God and of the nature of religious truths. It is a knowledge that refers to God, His reality and the relationship with mankind. God is a super natural being and an ultimate reality, but man, despite all his association with God, is unable to reach and explore His reality as He lies beyond man's approach of senses and imaginations. However, people tried to explore Him through their rational and as an end result; they differed and formed several concepts. Some of them are as follow,

1- Atheism:

Denying the existence of God & religion and believing in the self-existence of the universe.

2- Agnosticism:

Not being certain about the existence or non-existence of God, instead, being in doubt about it.

3- Deism:

Believing in God but denying the revelation & the interference of God in universe.

4- Pantheism:

Identifying and equating God with the law & nature of universe, declaring universe as God.

5- Monotheism:

Believing in that there is not but one God (this one is supported by the divine scriptures)

6- Polytheism:

Believing in the plurality of God i.e. numbers of God.

INTRODUCTION TO ISLAM

Islam (اسلام) is the name of a famous religion amongst the religions of the world. It is the religion of truth containing both thoughts and practices. According to the divine scripture Al-Qur'an, it is the true religion with Allah the Exalted and the final and complete version of the divine guidance.

Etymology:

Word Islam (اسلام) is an Arabic word derived from another Arabic word SALAM (سلام) without Alif (الف) which literally means "Peace" and "Safeness". As per the linguistic rules of Arabic, another letter Alif (الف) is added to it and it turned ISLAM (اسلام) which is the title of the religion. After Alif (الف) is added, the word is changed now and obviously the meanings as well. So, it is no more in the sense of peace & safeness now, instead, it stands for "Obedience", "Submission" and "Surrender".

Definition:

"A complete code of life set and revealed by Allah (The Creator, the Owner & the Lord) to the last of His messengers MUHAMMAD (ﷺ) to guide His slaves (Mankind & Jinn) to the success in life and afterlife".

Important Note 1:

Islam is unlike other religions as they contain some typical traditions and customs particularly at three occasions i.e. the birth of a child, the marriage and the death of a person, or maximum some rituals are being performed as worships. They do not have systematic and organized structure of worships, social dealings, economical system, political and legal affairs based upon their religion. Instead, Islam is a complete code of life and is fully equipped with teachings for every aspect of life. For instance, along with above mentioned disciplines of life, Islam also stresses upon daily routine of life such as eating, drinking, sleeping, dressing, and also commands to perform the necessities of daily life as per the commandments of Islam.

Secondly, Islam is a divine religion set, chosen and revealed by the Almighty ALLAH (The Creator, The Owner and The Lord of all the worlds). It is not a man made religion. Its teachings are genuinely from The Lord and are beyond doubts. Allah has sent it down to the last of His prophets MUHAMMAD (ﷺ) through one of His angels Gabriel (A.S.) who was considered as the chief of all of the angels as described by Almighty Allah. Allah reveals in Qur'an;

وَإِنَّهُ لَنَزَّلُ رَبُّ الْعَالَمِينَ ۝ نَزَلَ بِهِ الرُّوحُ الْأَمِينُ ۝ عَلَى قَلْبِكَ لِتَكُونَ مِنَ الْمُنْذِرِينَ ۝ بِلِسَانٍ عَرَبِيٍّ مُبِينٍ ۝ (الشعراء 26)

(195-192 :

"And truly, this is the revelation from the lord of all worlds. The trustworthy spirit (Jibreel) brought it down. Upon your heart, so that you may become one of the warners. In plain Arabic language".

The Subject of Islam:

The Subject refers towards the study of some particular thing or object which, as a topic, is discussed under a discipline. For example, human body is discussed under medical science. Therefore, it is the subject of medical science. And machine is the subject of engineering because it is discussed under the discipline of engineering.

In the same way, when Islam is considered as a discipline and the code for life, definitely there should be some subject to be discussed in it too. And the subject for the entire Islamic teachings is...

"The human beings and Jinn being slaves to Allah the Exalted", Allah the Exalted says;

بِمَا خَلَقْتُ الْجِنَّ وَالْإِنْسَ إِلَّا لِيَعْبُدُونِ ﴿٥١﴾ (الذاريات 51 : 56)

"I did not create mankind and Jinn except for the Purpose that they should worship me."

Islam reveals the teachings through which human beings may enable themselves to become good slaves to Almighty Allah.

The Objective of Islam:

The objective behind this revelation of Islam is. . . .

"To provide complete guidance to mankind and Jinn that leads them to the success in life and afterlife".

Important Note:

A noteworthy point should also be remembered that the actual concept of success, as per the interpretation of divine scripture Al-Qur'an, lies down with safe removal from the fire of hell and the entrance into paradise. Allah says....

مَنْ يُخْرِجْ عَنِ النَّارِ وَأَدْخِلَ الْجَنَّةَ فَقَدْ فَازَ، وَمَا الْحَيَاةُ الدُّنْيَا إِلَّا مَتَاعُ الْغُرُورِ ﴿١٨٥﴾ (آل عمران 3 : 185)

"So, whoever is safely removed from the fire of Hell and admitted to Paradise, he succeeded indeed. And the worldly life is not but the goods of delusion".

The Aayah reveals that beyond this actual success, no worldly success is appreciable and reliable especially when this world itself is a mortal one and if man is not safely removed from the fire of Hell.

Fore face of Islam:

In a very famous Hadith from prophet Muhammad () entitled with Hadith-e-Jibreel, prophet () introduced Islam by its face features as a reply to a question asked by Jibreel (a.s.). For details, Umar (r.a.) reports that once Jibreel (a.s.) came to see prophet () in the shape of a man while some of the companions (including reporter) were sitting around him in the holy mosque of Madinah. He asked few (five) questions which were replied by prophet (). Amongst all those questions, the very first was about Islam's initial and elementary introduction as he asked;

يَا مُحَمَّدُ ! أَخْبِرْنِي عَنِ الْإِسْلَامِ ... "O Muhammad! Tell me about Islam"

Prophet Muhammad () replied;

الْإِسْلَامُ أَنْ تَشْهَدَ أَنْ لَا إِلَهَ إِلَّا اللَّهُ وَ أَنَّ مُحَمَّدًا رَسُولُ اللَّهِ، وَ تُقِيمَ الصَّلَاةَ، وَ تُؤْتِيَ الزَّكَاةَ، وَ تَصُومَ رَمَضَانَ، وَ تَحُجَّ الْبَيْتَ إِنْ اسْتَطَعْتَ إِلَيْهِ سَبِيلًا
(متفق عليه)

"Islam is that you bear the witness that there is no worshiped one (God) except Allah and Muhammad is the messenger of Allah, and you establish Prayers, and you pay Charity, and you keep the Fasts of Ramadan, and you perform Hajj of the House if you can manage the way to it".

This hadith describes the face features of Islam by following five;

¢	FAITH	(Shahadatain, Eimaan)
¢	PRAYERS	(As-Salah)
¢	CHARITY	(Az-Zakah)
¢	PILGRIMAGE	(Al-Hajj)
¢	FASTS	(As-Saum)

Important Note 1:

The above mentioned five teachings are just a fore face and a small part of Islamic teachings, not a complete Islam. Because, Islam, in its teachings, is broader than these five same as man holds organs and body parts other than face features as well.

Pillars of Islam:

Another very famous Hadith from prophet () reveals Islam through a constructed building that has been set as an example for its teachings by the prophet () as he said;

بُنِيَ الْإِسْلَامُ عَلَى خَمْسٍ ، شَهَادَةِ أَنْ لَا إِلَهَ إِلَّا اللَّهُ وَ أَنَّ مُحَمَّدًا عَبْدُهُ وَ رَسُولُهُ، وَ إِقَامِ الصَّلَاةِ ، وَ إِيْتَاءِ الزَّكَاةِ، وَ الْحَجِّ ، وَ صَوْمِ رَمَضَانَ (متفق عليه)

"Islam is constructed upon five (pillars), bearing the witness that there is no worshiped one (God) except Allah and Muhammad () is a slave to Him and His messenger, establishing Prayers (Salah), paying Charity (Zakah), performing pilgrimage (Hajj) and keeping Fasts of Ramadan (Saum)".

The above mentioned reference again describes the above mentioned five teachings of Islam same as in the previous one, and a column structured building which is founded and based on five columns and pillars has been set as an example for Islam.

Important Note 2:

But again it is important to understand that the hadith fixes the above mentioned five as highly profiled important teachings of Islam but not a complete Islam. Because the columns only, are not a fully fledged building, there are so many other parts in a building as well. In the same way these five are not a complete Islam; there are many other sections of Islamic teachings as narrated by prophet (),

"The Faith secures more than seventy sections". (متفق عليه) يَمَانُ بِضْعٍ وَ سَبْعُونَ شُعْبَةً....

Importance of the five:

In order to understand the importance and the specialty of above mentioned five amongst the entire teachings of Islam, two of the reasons appear primarily for what these five have been considered as the pillars of Islam, the foreface of Islam and the initial elementary introduction to Islam.

- 1- The first one of these five belongs to faith and beliefs of Islam while the rest four belong to worships of Islam. The faith and worships are the actual objectives human beings and Jinn have been created for. Allah reveals;

اَخْلَقْتُ الْجِنَّ وَالْإِنْسَ إِلَّا لِيَعْبُدُونِ (الذاريات 51 : 56)

"I created not Jinn and Mankind except for that they should worship me".

- 2- Secondly, these five have ever been the part of the divine religions i.e. the religion with Almighty Allah as we shall discuss it under their respective studies.

Complete Structure of Islam:

Islamic teachings have been categorized initially into five major categories

1:- Beliefs: (عقائد و ایمانیات)

- 1- Oneness of Allah (توحید)
- 2- His angels (ملائکہ)
- 3- His books (کتاب)
- 4- His messengers (انبیاء و رسل)
- 5- Final day (الیوم الآخر)
- 6- The Destiny (قضاء و قدر)

2:- Worships: (عبادات)

- 1- Prayers (صلوٰۃ ، نماز)
- 2- Charity (زکوٰۃ)
- 3- Fasts (صوم ، روزہ)
- 4- Pilgrimage (حج)
- 5- Preaching + Holy War (دعوت و جہاد)

3:- Dealings: (معاشرات و معاملات)

- 1- Social dealings (معاشرات)
- 2- Money dealings (معاملات)

4:- Rules & Laws: (حدود و قوانین)

- 1- Political system (سیاسیات)
- 2- Legislative system (قانون سازی)
- 3- Judicial system (عدل و انصاف)

5:- Ethics & Purification:

(اخلاقيات و تزكیه)

- | | |
|-----------------------------|---------------------|
| 1- Concept of ethics | (تصور اخلاق) |
| 2- Concept of Good & Evil | (تصور خیر و شر) |
| 3- Concept of Fair & Unfair | (تصور معروف و منكر) |
| 4- Ethical Values | (اخلاقی اقدار) |
| 5- Purification | (تزكیه) |

Finality of Islam:

In the end, it is also important to understand the status of Islam in the eyesight of Allah, the Lord of all the worlds. According to the divine scripture Qur'an, the concept of the finality of Islam contains following two points;

- 1: Islam is the only religion with Almighty Allah and it is the final version of the revealed religions. Also Allah has warned clearly that one should not die without believing and following Islam. As Qur'an states;

الدِّينَ عِنْدَ اللَّهِ الْإِسْلَامُ ... (آل عمران 3 : 19)

"Truly, the religion with Allah is Islam".

Also states;

يٰۤاَيُّهَا الَّذِيْنَ اٰمَنُوْا اتَّقُوا اللَّهَ حَقَّ تَقٰۤاَتِهٖ وَلَا تَمُوْتُنَّ اِلَّا وَاَنْتُمْ مُّسْلِمُوْنَ (آل عمران 3 : 102)

"O you, who believe, be afraid of Allah, as He deserves to be feared, and let not yourself die save as Muslims."

- 2: The concept of success in true sense i.e. the success in afterlife totally depends upon following Islam, and there is no other possible way or key to success. No other religion is acceptable to Allah, the Lord and the Master of the Day of Judgment. Allah Himself has announced it in Qur'an saying,

مَنْ يَّبْتَغِ غَيْرَ الْإِسْلَامِ دِيْنًا فَلَنْ يُّقْبَلَ مِنْهُ ، وَهُوَ فِي الْآخِرَةِ مِنَ الْخٰسِرِيْنَ (آل عمران 3 : 85)

"And whoever seeks a religion other than Islam, It will never be accepted from him and he in the hereafter, will be among the losers".

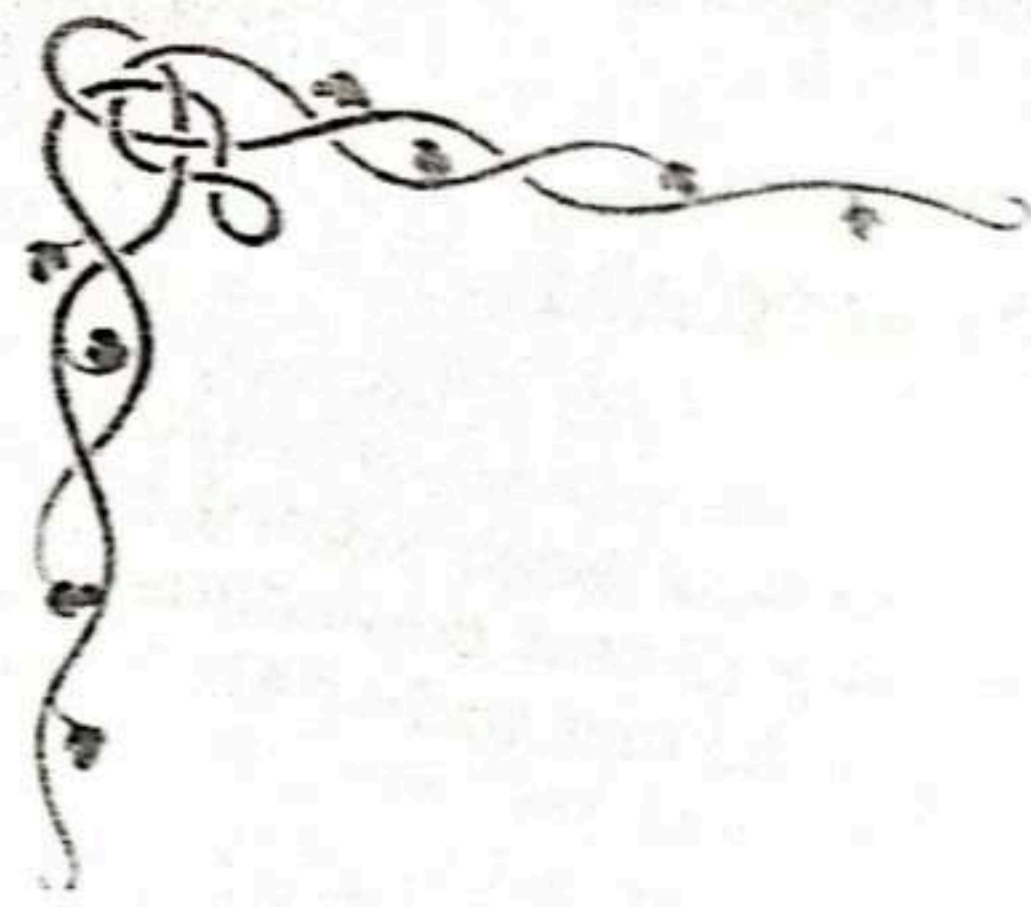
Also, dying without having faith in this final version of Islam will cause the definite & eternal punishment in Hell. Allah states;

إِنَّ الَّذِينَ كَفَرُوا وَمَاتُوا وَهُمْ كُفَّارٌ فَلَنْ يُقْبَلَ مِنْ أَحَدِهِمْ مِلَّةُ الْأَرْضِ ذَهَبًا وَلَوْ افْتَدَى بِهِ أُولَئِكَ لَهُمْ
عَذَابٌ أَلِيمٌ وَمَا لَهُمْ مِنْ نَاصِرِينَ ﴿٩١﴾ (آل عمران 3: 91)

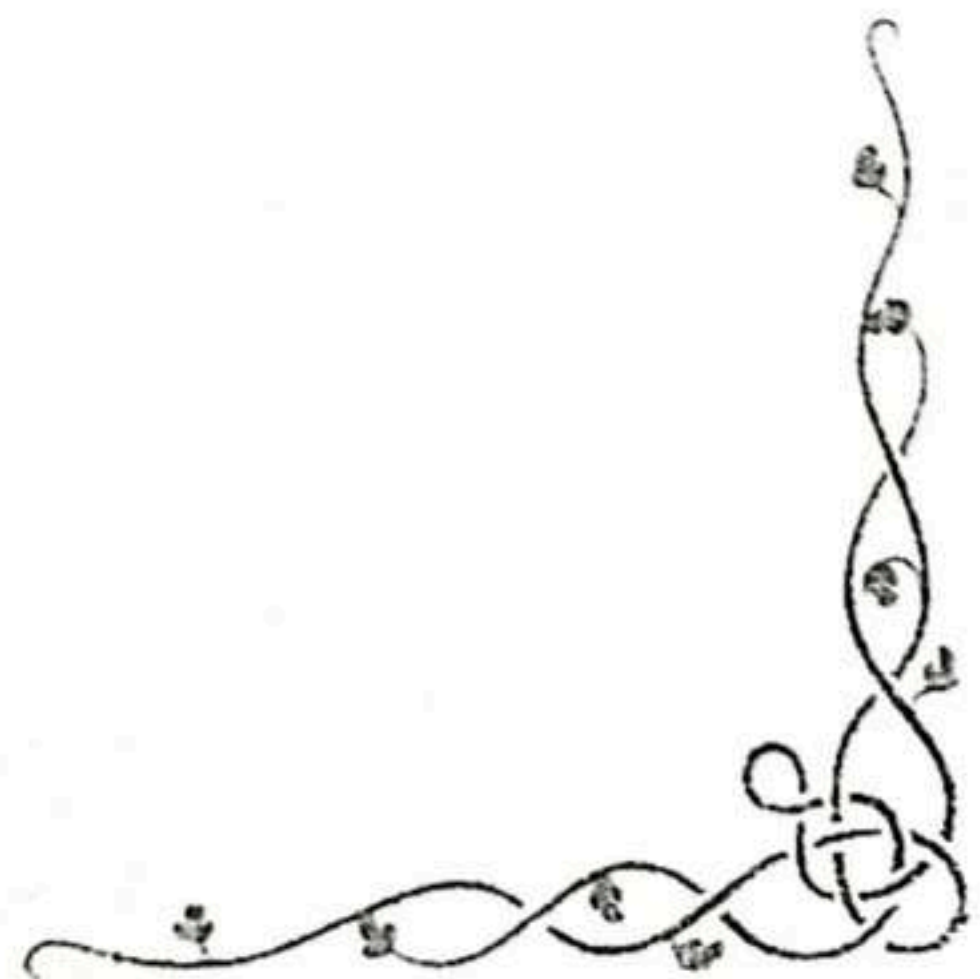
“Those who disbelieve and die as disbelievers, an earth-full of gold even shall never be accepted from any of them, even if one were to offer it as ransom. They are the ones for whom there is a painful punishment, and for them there are no helpers.”

عَنْ أَبِي هُرَيْرَةَ رَضِيَ اللَّهُ عَنْهُ قَالَ قَالَ رَسُولُ اللَّهِ ﷺ وَ الَّذِي نَفْسُ مُحَمَّدٍ بِيَدِهِ ، لَا يَسْمَعُ بِي أَحَدٌ
مِنْ هَذِهِ الْأُمَّةِ يَهُودِيٌّ
وَ لَا نَصْرَانِيٌّ ثُمَّ يَمُوتُ وَ لَمْ يُؤْمِنْ بِالَّذِي أُرْسِلْتُ بِهِ إِلَّا كَانَ مِنْ أَصْحَابِ النَّارِ (رواه مسلم)

Abu Huraira (r.a.) narrated that the messenger () of Allah said; “Any of the Jew or Christian from among the people who listens about me and then dies without having faith in what I have been sent with (Islam), he will definitely be among the hell members”.



Sources of Islamic Law



Sources of Islamic Law (Sharee'ah)

Source of law, the concept:

Islam is a divine religion chosen and sent down by Almighty Lord of all worlds to guide His slaves (Mankind) to the right path (Siraat-e-Mustaqeem) so that they may enable themselves to live a life as per the demand of Allah the Exalted.

Most of the teachings of Islam are practice based and an axiomatic point is that knowledge is necessarily required before every deed is performed in perspective of Islam especially to classify whether this particular act is in accordance with Islamic teachings and the commandments of Allah The Exalted or not. This classification is essentially needed hence we may not be misguided by any sensualist & devilish person. This confirmation requires some sanctioning source of Islamic law (Sharee'ah) which, in the light of inspiration, are two basics determined as ***Qur'an*** (Al-Kitaab) & ***Hadith*** (As-Sunnah), and two others are followings classified as ***Ijma*** & ***Qiyas***.

Sources

- | | |
|----------------------------|-------------|
| 1- <i>Al-Qur'an</i> | (Al-Kitaab) |
| 2- <i>Al-Hadith</i> | (As-Sunnah) |
| 3- <i>Al-Ijma</i> | |
| 4- <i>Al-Qiyas</i> | (Ijtihaad) |

Al Qur'an :- (As source of Shari'ah)

Qur'an is the name of the Holy Book of Almighty Allah which actually is regarded to be the direct utterance of The Almighty. The Qur'an is the only Divine Book which serves as a medium between man and Allah. The Messenger said:

Rejoice! Verily, an end of this Qur'an is in the hand of Allah, and its other end is in your hands. Hold fast to it. You will never be destructed, nor will you go astray after that. (At-Tabarani)

The word Qur'an literally stands for "To read", "To recite" in Arabic Language. It is defined as:

"The Holy book, sent down by Allah the Exalted to His final Prophet MUHAMMAD (Sallallahu Alaihi Wa Sallam), transmitted to us as Mutawatir without any doubt".

Elucidation:

As for the above mentioned definition, there are few parts need further explanation.

The Holy Book:

A book considered as a holy book by millions of Muslims undoubtedly. This particular clause distinguishes between Qur'an and rest of the worldly scriptures because they are not regarded as holy books.

Sent down by Almighty Allah:

Qur'an is unlike other books as it is the direct utterance of Almighty which He sent down as Inspiration through Gabriel (Jibreel). This typical clause differentiates between Qur'an and all other books even if those are considered as holy books by their followers. But actually those are non-revealed scriptures authored by mankind.

To His Prophet Muhammad (Sallallahu Alaihi Wa Sallam):

Qur'an has been sent down upon the heart of Apostle Muhammad (Sallallahu Alaihi Wa Sallam) as per the description of Qur'an itself. This article makes a total distinction between Qur'an and rest of the divine scriptures like Taurat & Injeel (Bible).

Transmitted to us as Mutawatir:

Qur'an, since it's time of revelation, has been Mutawatir and transmitted to us with same characteristic. Mutawatir, as per the interpretation of Islamic jurisprudence, is a terminology used for a specific featured transmission of

narration which causes 100% certainty, assurance and surety of preservation of the narrated text. It is defined as:

"A text narrated and preserved throughout the time by such a large number of people that no one could even think of them to be corrupt all at a time".

This kind of narration always ensures the doubtless transmission of the text. Through clause, Qur'an appears to be a sure short protected divine scripture against rest of the divine books as they are corrupted by lots of amendments made by their followers in later times.

Without any doubt:

This is the final clause that filters and removes all types of suspicions from entire articles of the definition of Qur'an.

The Qur'an as Comprehensive Legislation:

The Qur'an constitutes the most comprehensive concept of Islam on the practical level as the source of the Shari'ah, or the Divine laws and legislation. It is comprehensive because it includes law, as well as the underlying purposes and moral principles, and the creed to which every Muslim must subscribe. Islamic Shari'ah is designed and made suitable not only for Muslims, but for all mankind for all times. The Islamic law governs all human acts, by delineating every person's public or private-duties toward Allah and toward His creation, including man.

Man-made laws are subject to alteration and are based on theories. Whenever a new body of legislators assumes authority, or a new theory appears and appeals to the legislators, the laws are changed accordingly. The Divine law, on the other hand, is unalterable and perpetual because the One Who made it is The Ever-living and Everlasting. He is the Creator Who created mankind and ordained for all human beings what is best for them till the end of time.

Authenticity of Qur'an:

Qur'an is the first and the very major source of Islamic Shari'ah. Because it is the utterance of Almighty Allah and is a reliable scripture. This is not just a faith with no evidence, but a truth that can easily be evaluated by proofs and evidences. For instance,

Protected by Allah:

Qur'an, since it's time of revelation, has been in the protection of the Almighty Allah as He, the Exalted Himself, has promised to preserve and protect the Qur'an from distortion, adulteration, addition, or impairment. Allah says:



إِنَّا نَحْنُ نَزَّلْنَا الذِّكْرَ وَإِنَّا لَهُ لَحَافِظُونَ (الحجر: 9)

"Verily, we, ourselves have sent down the Dhikr (the Qur'an) and We are there to protect it".

Preserved in hearts & minds:

Among the miracles of Qur'an is the memorization of it. There are millions of Muslims all over the world who have memorized and learnt Qur'an by heart. This is the uniqueness of Qur'an which cannot be observed in any other book.

Mutawatir:

As we have discussed above that Qur'an, since it's time of revelation, has been Mutawatir which ensures the status of Qur'an being a secured source of Shari'ah in Islam.

Intelligibility of Qur'an:

Qur'an is the book of guidance and fully enriched with a quality that it is very simple & easy to understand as it is in plain and clear Arabic language. Unlike other divine books which have lost their original text and even their languages are dead, Qur'an speaks with a language which is alive and spoken, written and understood as a mother tongue even in two of the continents of the world. Any individual can easily learn Arabic language and can gain direct guidance from Qur'an and needs no medium.

Inimitability of Qur'an:

The Qur'an was revealed to the Prophet, in portions, as circumstances warranted during a period of twenty-three years, thirteen in Makkah and ten in Madinah. It is divided into 114 Surahs (chapters) of varying lengths.

Allah, the Exalted, has challenged the Arabs and non-Arabs to produce a Quran similar to the Divine one. The challenge was reduced to ten Surahs, yet they failed to do so. Finally, Allah challenged them to produce a single surah comparable to any of His. Although they were the masters of eloquence and rhetoric, yet they were incapable of taking up the challenge. They realized that the Quran could never be from other than Allah, the Rubb of all worlds.

The difference between the miracles of the previous Messengers; which proved their veracity; and that of Muhammad, the Messenger of Allah, is that theirs took place during their lifetime, whereas the miracle of the Qur'an remains effective everlasting, and challenging until the Day of Resurrection.

Qur'an, the book of principals:

Qur'an is the book of guidance, but it is the principal source of Islamic Shari'ah (law). Allah has sent it down to make manifest everything and to be a means of guidance and mercy to both men and jinn. It gives us the basic

principles of Islamic law. For example, Qur'an commands for establishing prayers but the details of prayers are mentioned nowhere in Qur'an.

After this fact, seeking the details of commandments in Qur'an and ultimately denouncing or falsely interpreting any particular article of Shari'ah in case of not finding details in it is a stupidity and may cause apostasy.

Principals:

Qur'an, being principal source of Shari'ah, provides us root foundations for entire Islamic teachings that have been categorised into five major sorts as per discussed in introduction to Islam and the further required details are provided by Sunnah and Hadith.





Sunnah (Hadith)

As source of Shari'ah (Law) in Islam

Major topics:

- Meanings & definition of Hadith and Sunnah.
- Status of a Prophet
- Obedience of Prophet
- Threat on disobedience of Prophet
- Duties of a Prophet
- Authenticity of Hadith
- Qur'an without Hadith
- Compilation of Hadith
- Major compilations of Hadith.

Hadith:-

Meanings : Word, conversation, newly made thing etc.

De inition : Sayings, actions & Taqreer of prophet Muhammad (sallallahu Alaihe Wasallam).

Taqreer: Approval of Prophet (Sallallahu Alaihi Wa Sallam) by keeping silence upon some utterance or act performed in his presence.

Sunnah:-

Meanings : Way, method, style etc.

De inition : Actions (Life style) of prophet Muhammad (Sallallahu Alaihe Wasallam) that he use to opt.

Status of a Prophet:

According to Qur'an, a Prophet is not a postman that he receives commandments from Allah and conveys the message to mankind and his duty is off. Instead, he has been sent to guide the mankind to the right path that leads to the happiness of Allah Almighty. People have been decreed to follow the footsteps of the Prophet. So that, a Prophet is declared to be a preacher, a teacher, a leader, a role model and a purifier as well.

Obedience of Prophet:

Obedience of prophets is the most important issue in the eyesight of Allah and He, the Exalted, has emphasized upon it very much in His book. For instance,

- Every prophet has been sent to be obeyed as per the statement of Allah the Exalted.

And We sent no messenger but to be obeyed by the leave of Allah. (An-Nisaa: 64)

- And the obedience of a prophet has been considered as the obedience of Almighty Allah.

He, who obeys the messenger, has indeed obeyed Allah. (An-Nisaa: 80)

- Muhammad (Sallallahu Alaihe Wasallam) has been sent as a role model & design for the entire mankind.

Indeed, there is a good model for you in the messenger of Allah, for him who hopes for Allah and The Last Day. (Al-Ahzab: 21)

- One who wants to please Allah and to become a favourite & beloved to him, has no option except to follow the footsteps of the Prophet Muhammad (Sallallahu Alaihi Wa Sallam).

Say, if you love Allah, then follow me, Allah shall love you and forgive you your sins. (Aali-Imran: 31)

Threat for disobeying the Prophet:

Disobedience of Prophet is strictly forbidden by Qur'an and can cause painful punishment. In Qur'an, there are many references regarding the issue.

Duties of Prophets:

Every prophet was appointed to guide the mankind to the right path. And for the purpose, they were assigned four duties according to Qur'an. (Al-Baqarah:129, Aali-Imran:164)

- 1- To recite (convey) the Aayat of Allah to mankind.
- 2- To explain the Holy Book.
- 3- To teach them Hikmah (The Wisdom defined as Sunnah).
- 4- To purify the people.

Authenticity of Hadith:

Some people think that Hadith today, is unacceptable & untrustworthy as it was not saved and compiled in the beginning till 3rd century. As a result, a large part of Hadith was destroyed and people made amendments & changes of their own in it.

But this is totally a lame excuse because Hadith is the interpretation of Qur'an and Qur'an is totally protected by Allah not only it's words but meanings & interpretation as well.

Qur'an without Hadith:-



It is impossible to understand Qur'an without Hadith. If Hadith is no more trustworthy, it means Qur'an is no more a guidance which is obviously false.

Example 1:

Qur'an Commands to establish Salah, but there is no further detail in Qur'an that what does Allah mean by Iqamat e Salah? And how can one act upon this command? Only Sunnah can explain this commandment & makes it practically possible. Prophet (Sallallahu Alaihi Wa Sallam) said, "Perform Salah as you see me performing it".

Example 2:

Allah, in Qur'an, has decreed to perform Hajj, but, by Qur'an only, we are unable to know what Hajj is and how can one perform it? Until, Hadith interprets it for us. Prophet (Sallallahu Alaihi Wa Sallam) said, "Learn from me the methodology of Hajj".

Example 3:

Allah has revealed in Qur'an about lots of events, but none can understand that what event has been discussed in the Ayah?

Compilation of Hadith :-

In the age of Prophet:

Written, Example Sahifa Sadiqa by Abdullah bin Amr bin Aas (R.A.), Sahifa Ali (R.A.). But, mostly Hadith was preserved by memorising and practicing upon it.

1st Century

Hadith was mostly memorised but in the end of the century, Caliph Umar bin Abdul Aziz commanded to preserve it in written shape. As a result, many compilations of Hadith were prepared. For example, Ibn-e-Shahab Zohri's compilation.

2nd Century

Imam Abu Hanifa's Musnad

Imam Maalik's Mautta

Imam Muhammad's Mautta

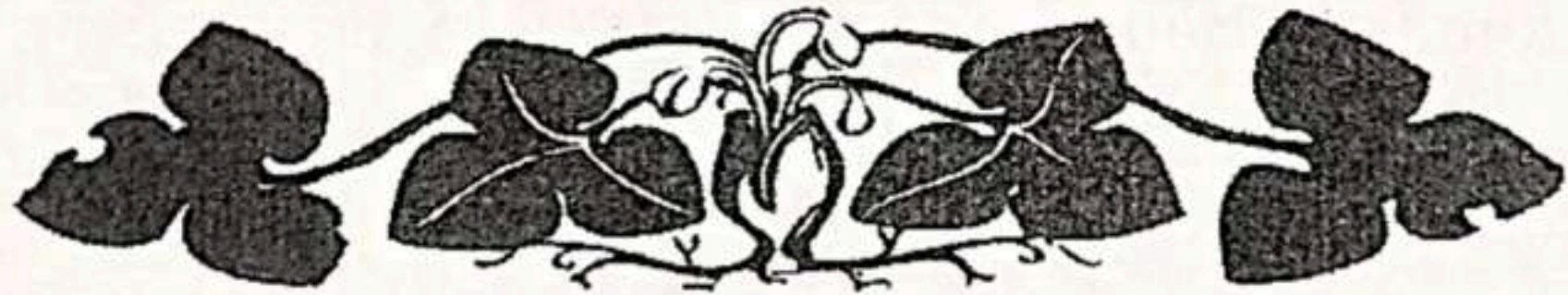
Imam Ahmad's Musnad

3rd Century

Age of Sihah e Sittah

Major compilations of Hadith:

1. Mautta Imam Maalik
2. Mautta Imam Muhammad
3. Musnad Imam Ahamad
4. Sahih Bukhari
5. Sahih Muslim
6. Sunan e Nasaai
7. Sunen e Abi Dawood
8. Jame Tirmizi
9. Sunan e Ibne Maja
10. Sunan e Tahavi



Ijma (الإجماع)

Meanings:

To be gathered together (تَجْمَعُونَ), to add together (تَجْمَعُونَ), Unanimity & Consensus (اتفاق رائے).

Definition:

Unanimity (General agreement) of all great religious leaders on certain points of law.

Concept of Ijma:

Today, democracy is the most successful political system and also a good solution for the world problems. Many of the problems are being solved through voting and the majority is considered as an authority. And in case, if all the members vote in favour of one certain point, it provides the surety of its being hundred percent correct and useful. Ijma has almost the same concept.

Types of Ijma:

- 1- Ijma-e-Sahaba (unanimity of the Companions of the Prophet)
- 2- Ijma-e-Tabieen (unanimity of the followers of the companions)
- 3- Ijma-e-Ummah (unanimity of the nation)

From another point of view Ijma consists of three types:

Ijma -e-Qowli

If this consensus came down by way of speech, where the Mujtahiddeen had verbally specified the issue. That is, they said that they are unanimous on so and so issue or if each one of them had individually acceded to the fact that he is in agreement or that his math-hab conforms to it.

Ijma-e-Feli

When all of them had implemented and practiced on any particular action and they had all unanimously accepted that act, then this is called Ijma-e-Feli. These two types of Ijma are the most superior.

Ijma-e-Sukooti

If any Mujtahid had said or implemented any ruling/action during his time, and in the subsequent eras, notwithstanding other Mujtahiddeen knowing of this, and having time and opportunity to comment or refute, had maintained silence. Even this is classified as Ijma. Ijma-e-Sukooti is (silent) consent.

Authenticity of Ijma:

Ijma is also one of the sources of law in Islam and is placed on No 3 after Qur'an and Sunnah.

Argument:

وَمَنْ يُشَاقِقِ الرَّسُولَ مِنْ بَعْدِ مَا تَبَيَّنَ لَهُ الْهُدَىٰ وَيَتَّبِعْ غَيْرَ سَبِيلِ الْمُؤْمِنِينَ لُوَلِّهِ مَا تَوَلَّىٰ وَنُصْلِهِ جَهَنَّمَ ۚ وَسَاءَتْ مَصِيرًا (النساء: 115)

Whoever will break away with messenger after the right path has become clear to him, And follow other than believer's way, We shall keep him on the path he has chosen and We shall admit him to the Hell, what an evil place to return.

اتَّبِعُوا السَّوَادَ الْأَعْظَمَ فَإِنَّهُمْ شَدَّ شَدَّ فِي النَّارِ (ابن ماجه)

Follow the majority of the nation, whoever will get separation (from Muslims) will be separate in Hell.

لَا يَجْمَعُ أُمَّتِي عَلَى ضَلَالَةٍ وَ يَدُ اللَّهِ عَلَى الْجَمَاعَةِ (ترمذی)

My nation will not get together on deviation and Allah's help (blessing) is along with the league.

Conditions:

Ijma no doubt is acceptable but with two conditions:

- 1- It must not be against Qur'an.
- 2- It must not be against famous of the Sunnan.

Qiyas, Ijtihad

Ijtihad

Meanings: To work hard, to struggle.

Qiyas,

Meanings: Opinion, guess, thought.

Requirement & Importance of Qiyas:

This world is progressive and changeable, the circumstances and the customs are changing with the passage of time. There are so many new problems and points we have to face them. Being Muslims, we need to know the Islamic Shariah's point of view about some certain points. And the only way to know about it is the Qiyas. So Qiyas is necessary and important.

Argument:

Prophet (Sallallahu Alaihi Wa Sallam) sent Ma'aaz ibne Jabal (Raziyallahu Anhu) to Yaman as governor and asked, "How will you take a decision"? He replied, "I will take a decision by the book of Allah". Prophet asked, "If you do not find it in the book of Allah"? He replied, "By the Sunnah of the prophet". Prophet asked, "If you do not find it in Sunnah"? He replied, "I will struggle through my own opinion and I will not stop". Prophet (Sallallahu Alaihi Wa Sallam) said, "All the praises belong to Allah who granted The messenger of the prophet of Allah the divine guidance to the pleasure of the prophet of Allah". (He expressed happiness.) (Tirmizi, Abu Dawood)

Note:

To understand the definition, it is must to know about some important components of Qiyas first.

Qiyas has three components,

- 1- Maqees (مقيس)
- 2- Maqees Alaih (مقيس عليه)
- 3- Illat (علت)
- 4- Hukm (حكم)

Maqees:

Some new point we need to know about its status in the light of Qur'an & Sunnah.

Maqees Alaih:

Some certain point of law which is already sure and clear in Qur'an or Sunnah.

Illat:

The reason & the cause which causes for some typical commandment in some certain point of law.

Hukm:

The particular commandment set by Allah or His messenger.

Definition:

To shift the commandment of Maqees Alaih to Maqees due to same common Illat found in both.

Example:

For example we need to know the status of drugs (like hemp) in Islam which is not mentioned anywhere in Qur'an or Sunnah, so we find that wine is prohibited in Qur'an & sunnah and the reason for its being forbidden is to remove senses & the intoxication and the same reason is found in drugs. So we shifted the order of being forbidden from wine to hemp. We can say that hemp is forbidden in Islam.

In this example the wine is Maqees Alaih which is sure and clear in Islam. The hemp is Maqees about which we need to know. And the intoxication is the Illat which is common in both.

Conditions:

There are two kinds of conditions for the acceptance of Qiyas.

- 1- For Ijtihad.
- 2- For Mujtahid.

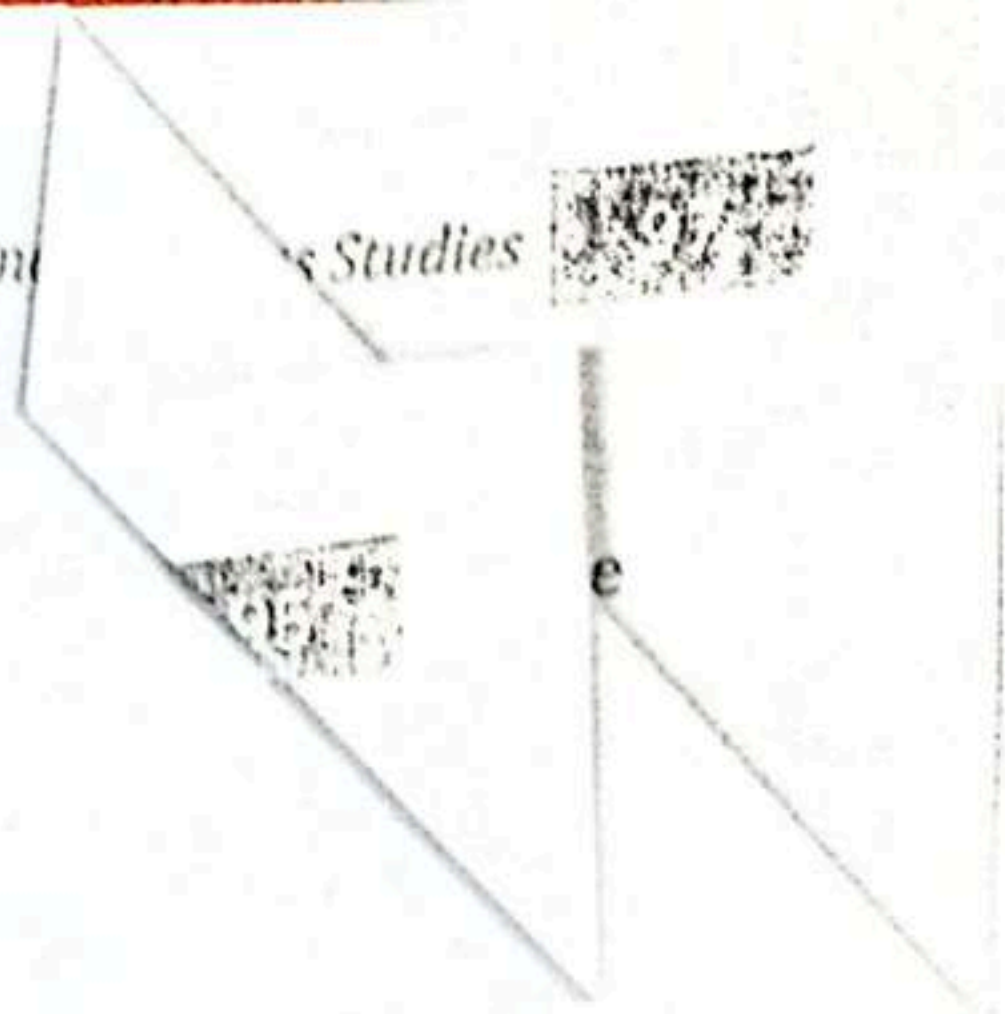
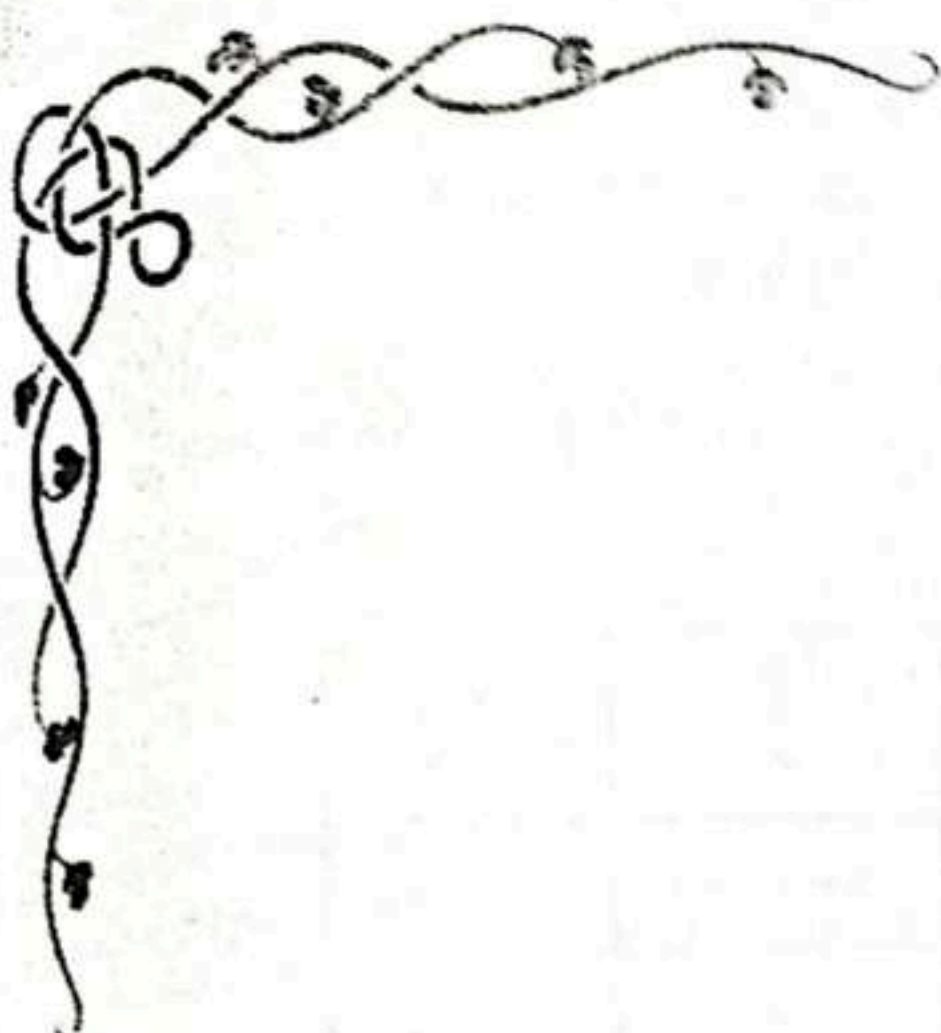
For Ijtihad:

It must be under the rules of Ijtihad and must not be against all three sources of law mentioned above.

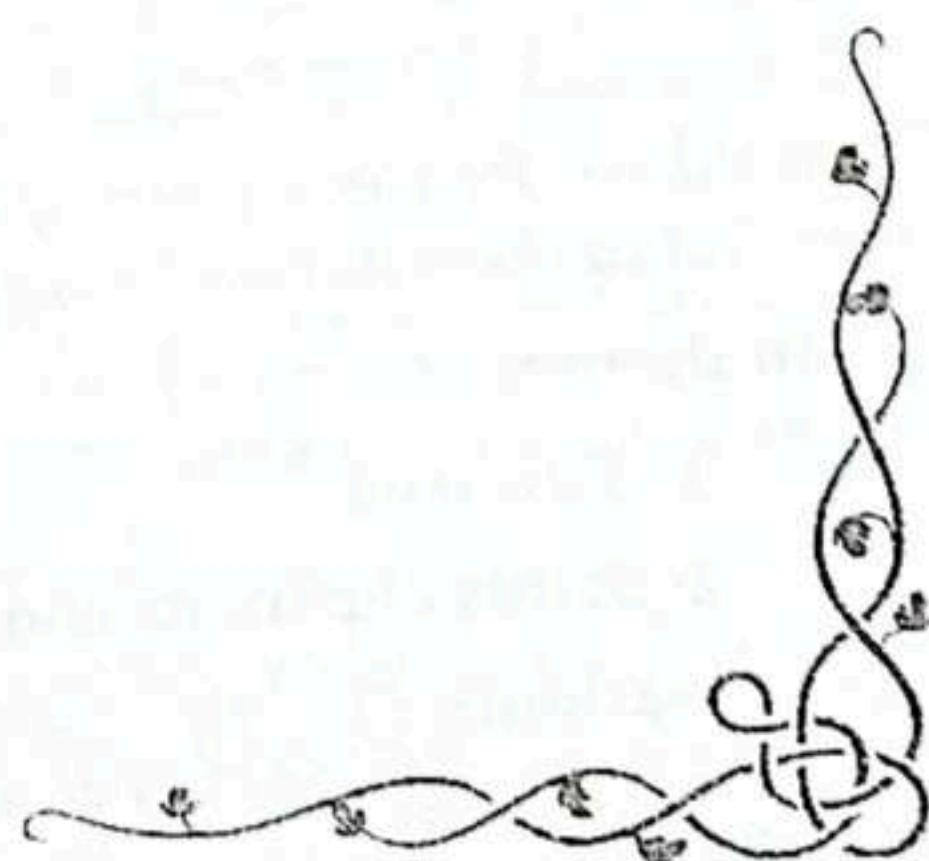
For Mujtahid:

He must fulfil the criteria for a Mujtahid. Because it is the matter of Islam, so no one is allowed to mislead the nation.

- 1 - Piety (تقوى)
- 2 - Detailed and deep knowledge about Islam



Textual Study of Al-Quran (Selected Ayaat)



II

Text of Al Qur'an

Ayah 23

وَقَضَىٰ رَبُّكَ أَلَّا تَعْبُدُوا إِلَّا إِيَّاهُ وَبِالْوَالِدَيْنِ إِحْسَانًا ۖ إِمَّا يَبْلُغَنَّ عِنْدَكَ الْكِبَرَ أَحَدُهُمَا أَوْ كِلَاهُمَا فَلَا تَقُلْ لَهُمَا أُفٍّ وَلَا تَنْهَرْهُمَا وَقُلْ لَهُمَا قَوْلًا كَرِيمًا ۝

وَقَضَىٰ	رَبُّكَ	أَلَّا	تَعْبُدُوا	إِلَّا	إِيَّاهُ	وَبِالْوَالِدَيْنِ	إِحْسَانًا
And has decreed	Your Lord	That(do)not	worship	except	Him Alone	And to the parents	(be)good
إِمَّا	يَبْلُغَنَّ	عِنْدَكَ	الْكِبَرَ	أَحَدُهُمَا	أَوْ	كِلَاهُمَا	فَلَا تَقُلْ
whether	reach	With you	The old age	One of them	or	Both of them	Then(do)not
لَهُمَا	أُفٍّ	وَلَا	تَنْهَرْهُمَا	وَقُلْ	لَهُمَا	قَوْلًا	كَرِيمًا
To both of them	A word of disrespect	And(do)not	Repel them	But speak	To them	A word	noble

Your lord has decreed that you worship none but him, and do good to your parents. If any one of them or both of them reach old age in your life, do not say them uff and do not scold them and address them with respectful words.

Uff: It means any word or expression which cause to tease them.

Ayah 24

وَاخْفِضْ لَهُمَا جَنَاحَ الذُّلِّ مِنَ الرَّحْمَةِ وَقُلْ رَبِّ ارْحَمْهُمَا كَمَا رَبَّيْنِي صَغِيرًا ۝

وَاخْفِضْ	لَهُمَا	جَنَاحَ	الذُّلِّ	مِنَ	الرَّحْمَةِ	وَقُلْ	رَبِّ
And lower	To them	(the)wing	(of)humility	(out)of	(the)mercy	And say	My Lord
		ارْحَمْهُمَا		كَمَا	رَبَّيْنِي	صَغِيرًا ۝	
		Have mercy on both of them		As	They brought me up	(when I was)small	

And submit for them yourself in humility with compassion and say, "My Lord! Be merciful to them as they brought me up in my childhood".

Main theme:

1- Towheed.

2- Status of parents and their rights.

Explanation:-

Towheed:

It has been discussed under the topic Beliefs.

Status of parents:

Allah is the creator of entire mankind but in this world, He has made the parents as the reason for the birth of a child. And according to the system, they take a lot of pain for this cause. They give birth to their child and then bring him up and provide him all the necessities of life. So, a man should be grateful to his parents as well as to his Lord Allah. And disobedience of parents or any kind of misbehaviour with them is strictly prohibited by Allah almighty.

Rights of parents:

- 1- To obey all the orders of them except those which cause the disobedience of Allah and His prophet.
- 2- To serve them.
- 3- To not to be the cause to annoy them.
- 4- To pray for them if they are no more.
- 5- To do good to their relatives & friends.

References:

وَوَصَّيْنَا الْإِنْسَانَ بِوَالِدَيْهِ إِحْسَانًا (احقاف: ١٥)

We have enjoined on man kindness to his parents.

رَضِيَ الرَّبُّ فِي رِضَى الْوَالِدِ وَسَخَطُ الرَّبِّ فِي سَخَطِ الْوَالِدِ (ترمذی)

إِنَّ اللَّهَ حَرَّمَ عَلَيْكُمْ عُقُوقَ الْأَهْلَابِ (بخاری)

هَمَّاجَتُكَ وَ نَارَكَ (ابن ماجه)

Ayah : 25

رَبُّكُمْ أَعْلَمُ بِمَا فِي نُفُوسِكُمْ

إِنْ تَكُونُوا صَالِحِينَ فَإِنَّهُ كَانَ لِلْأَوَّابِينَ غَفُورًا ۝

رَبُّكُمْ	أَعْلَمُ	بِمَا	فِي	نُفُوسِكُمْ	إِنْ	تَكُونُوا	صَالِحِينَ
Your Lord	(is)most knowing	Of what	(is)in	yourselves	if	You are	righteous
	فَإِنَّهُ	كَانَ		لِلْأَوَّابِينَ		غَفُورًا	
	Then indeed, He	is		To those who often turn (to Him)		Most forgiving	

Your Lord knows best whatever is in your hearts, if you are righteous, then verily

He is most forgiving for those who turn to Him in repentance.

Main theme:-

Allah knows everything even the intentions behind the actions, so we must be afraid of Him and obey His commands. One who obeys His commands and in case of some mistake turns to Him in repentance becomes righteous and deserves the mercy and forgiveness from Him.

Explanation:-

1- In the first part of Ayah, Allah told us about His powers that nothing in the universe is hidden for Him. This point is basically related to the Belief of Towheed.

2- In the second part of ayah, Allah told us that those who are righteous deserve the mercy and forgiveness from Him. And Allah is most forgiving for those who turn to Him and ask Him the forgiveness. Asking forgiveness which is called as Istighfaar is very important in Islam and is a great cause to get the pleasure of Allah and the success in the hereafter.

References:

As Allah said, "Surely, Allah loves those who are most turning to Him in repentance and loves those who keep themselves pure". (Al Baqarah: 222)

Prophet (Sallallahu Alaihe Wasallam) said "Surely, every human being is at fault and the best of them are those who are most turning to Him in repentance". (tirmizi)

And said, "success for one who found maximum Istighfaar in his register of deeds". (Ibne Majah)

Ayah 26, 27 & 28

وَاتِ ذَا الْقُرْبَىٰ حَقَّهُ وَالْيَسِيرَ وَلَا تُبْذِرْ تَبَذِيرًا ۝

وَاتِ	ذَا الْقُرْبَىٰ	حَقَّهُ	وَالْيَسِيرَ	وَلَا	تُبْذِرْ	تَبَذِيرًا
And give	The relative	His right	And the wayfarer	And (do) not	spend	wastefully

And give the relative his right and the needy and the wayfarer and do not (squander) spend wastefully.

إِنَّ الْمُبَذِّرِينَ كَانُوا إِخْوَانَ الشَّيْطَانِ ۖ وَكَانَ الشَّيْطَانُ لِرَبِّهِ كَفُورًا ۝

إِنَّ	الْمُبَذِّرِينَ	كَانُوا	إِخْوَانَ	الشَّيْطَانِ	وَكَانَ	الشَّيْطَانُ	لِرَبِّهِ	كَفُورًا
indeed	The spendthrifts	are	brothers	satans	And (is)	The Satan	To his Lord	ungrateful

Surely, the squanderers are the brothers of Satans and the Satan is very ungrateful to his Lord.

وَأَمَّا تَعْرِضْنَ عَنْهُمْ رَحْمَةً مِّن رَّبِّكَ تَرْجُوهَا فَقُلْ لَهُمْ قَوْلًا مَّيْسُورًا ۝

وَأَمَّا	تَعْرِضْنَ	عَنْهُمْ	رَحْمَةً	مِّن
And if	You turn away	From them	mercy	from
رَبِّكَ	تَرْجُوهَا	فَقُلْ	قَوْلًا	مَّيْسُورًا
Your Lord	Which you expect	Then say	A word	gentle



And if you turn away from them looking for a bounty from your Lord you are expecting, then speak to them in polite words.

Main theme:-

These verses are containing on three commands about rights of relatives, needy, and wayfarer and commands about Tabzeer & rejection of needy person which are in fact five and are related to each other.

Explanation:-

Topics discussed in these three Ayaat are:

- 1- Rights of relatives.
- 2- Rights of needy.
- 3- Rights of wayfarer.
- 4- Forbidding Tabzeer (spending wastefully).
- 5- How to reject a needy?

Rights of relatives:-

Islam is the only religion which protects the rights of every person. So, the rights of relatives are also protected which are called in Islam as sila Rehmi. Allah and His prophet have emphasised on this topic at so many places in Qur'an and Sunnah.

۱- إِنَّ اللَّهَ يَأْمُرُ بِالْعَدْلِ وَالْإِحْسَانِ وَإِيتَاءِ ذِي الْقُرْبَىٰ وَيَنْهَىٰ عَنِ الْفَحْشَاءِ وَالْمُنْكَرِ وَالْبَغْيِ يَعِظُكُمْ لَعَلَّكُمْ تَذَكَّرُونَ (النحل: ٩٠)

Verily, Allâh enjoins Al-Adl (i.e. justice) and Al-Ihsân [i.e. to be patient in performing your duties to Allâh], and giving (help) to kith and kin: and forbids Al-Fahshâ' (i.e all evil deeds), and Al-Munkar (i.e all that is prohibited by Islâmic law), and Al-Baghy (i.e. all kinds of oppression), He admonishes you, that you may take heed.

۲- مَنْ وَصَلَكَ وَصَلَهُ وَمَنْ قَطَعَكَ قَطَعَهُ (بخاری)

Qarabat has some limited circles:

- 1- Brothers and sisters.
- 2- Brothers and sisters of father & mother.
- 3- Children of uncles and aunties (Cousins).

Rights:

- 1- To help them by wealth if they deserve it.
- 2- To visit them if they are sick.
- 3- To serve them if they need it.
- 4- To protect their wealth & honour.
- 5- To be aware of their conditions.

Sila Rehmi:

Literally means to join the womb, but defined as to give the rights of relatives. Islam says that every person is responsible for his duties, so, we should give their rights even if they don't give us our rights.

لَيْسَ الْوَأَصِلُ بِالْمُكَافِي وَلَكِنَّ الْوَأَصِلَ الَّذِي إِذَا قُطِعَتْ رَحْمَةُ وَصَلَهَا (بخاری)

Bene its:

- 1- Love and respect.
- 2- Increase of wealth.
- 3- Extension of life.

فَإِنَّ صَلَاةَ الرَّحِمِ مَحَبَّةٌ فِي الْأَهْلِ مَثْرَاءٌ فِي الْمَالِ مُنْسَأَةٌ فِي الْأَثَرِ (ترمذی)

Rights of needy:-

To help him by wealth if he deserves it and if we have enough to give him

Note:

Professional baggers must not be paid anything because begging is forbidden in Islam and help in forbidden is also prohibited in Islam.

Who is a Miskeen?

Miskeen is not one who comes begging and moves away by one or two morsels but the real Miskeen is one who is needy but does not express his need to the people. (Hadith)

Rights of wayfarer:-

- 1- To entertain him.
- 2- To protect his life, honour & goods.
- 3- To help him by wealth if he deserves it.
- 4- To guide him to the right path.

Tabzeer:-

To spend without nay requirement (wastefully) is called as Tabzeer and is forbidden because of this ayah.

Israf:

To spend more than requirement and it is also forbidden in Islam

Brothers of Satan:

Mubazzireen are called as brothers of Satan because Satan is ungrateful to Allah as Allah gave him wealth of knowledge and wisdom but Satan spent it in disobedience of Allah. In the same way squanderers spend their wealth in disobedience of Allah.

How to reject a needy?

Islam teaches us that if we don't have enough to give the needy person, we must not be rude to them or must not repulse them instead we should be polite and merciful to them. Allah said,

And as for the beggar, do not scold him.

وَأَمَّا السَّائِلَ فَلَا تَنْهَرْ (الضحى: ١٠)

Ayah 29 & 30

وَلَا تَجْعَلْ يَدَكَ مَغْلُولَةً إِلَىٰ عُنُقِكَ وَلَا تَبْسُطْهَا كُلَّ الْبَسْطِ فَتَقْعُدَ مَلُومًا مَّحْسُورًا ۝

وَلَا	عُنُقِكَ	إِلَىٰ	مَغْلُولَةً	يَدَكَ	وَلَا تَجْعَلْ
And do not	Your neck	to	chained	Your hand	And do not make
مَحْسُورًا	مَلُومًا	فَتَقْعُدَ	الْبَسْطِ	كُلَّ	تَبْسُطِهَا
Insolvent	blameworthy	So that you sit	reach	(to its) utmost	Extend it

And do not keep your hand tied to your neck, nor extend it to the full extent, lest you should be sitting reproached, empty-handed.

إِنَّ رَبَّكَ يَبْسُطُ الرِّزْقَ لِمَن يَشَاءُ وَيَقْدِرُ ۚ إِنَّهُ كَانَ بِعِبَادِهِ خَبِيرًا بَصِيرًا ۝

يَشَاءُ	لِمَن	الرِّزْقَ	يَبْسُطُ	رَبَّكَ	إِنَّ
He wills	For whom	The provision	extends	Your Lord	indeed
بَصِيرًا	خَبِيرًا	بِعِبَادِهِ	كَانَ	إِنَّهُ	وَيَقْدِرُ
All-Seer	All-Aware	Of His slaves	is	Indeed, He	And straitens

Indeed, your Lord expends sustenance for whom He wills and straitens. Surely, He is All-aware All-seeing of His slaves.

Note:

Keeping hands tied to the neck is an expression that stands for miserliness and extending it stands for extravagance.

Main theme:

Ayah 29:- The verse means that one should neither be miserly nor extravagant. In the latter case, one may sit empty-handed, reproaching oneself for overspending his wealth.

Ayah 30:- This verse tells us that provision of sustenance is totally in the control of Allah and He knows better that what, how, how much and when is to provide to someone.

Explanation:

Revelation of Verses 29 & 30:

Once, a boy requested the prophet (Sallallahu Alaihi Wa Sallam) to grant him one of His shirts. By chance, Prophet (p.b.u.h.) had no extra shirt, so, He

asked him to come later. The boy turned back to Prophet and said, "My mother says, grant me the shirt you are wearing". Prophet (p.b.u.h) granted the shirt and remained shirtless. Meanwhile, it was time to offer prayers and people waited for Him to come out and lead them. But Prophet (p.b.u.h) did not come out. People became worried, so they came to see Him and found Him sitting shirtless. Allah sent down these verses.

The Principle 1:

By this ayah, a golden principle comes out that to operate economically is the best way to spend wealth even when one is giving as charity. We should be careful about our condition and requirement.

Reference:

Prophet (p.b.u.h) said,

One who operated economically never became a poor.

ما عال من اقتصد

الاقتصاد في النفقة نصف المعيشة

Moderation in spending is half of the solutions of subsistence. (Mishkat)

The Principle 2:

Ayah 30 gives us another rule that giving as charity is to help the poor people not to become a lord to them. We are neither some super nature power nor the provider of sustenance, so we should keep our limits and leave the rest for Allah the lord of all the worlds.

Ayah 31

وَلَا تَقْتُلُوا أَوْلَادَكُمْ خَشْيَةَ إِمْلَاقٍ نَحْنُ نَرْزُقُهُمْ وَإِيَّاكُمْ ۖ إِنَّ قَتْلَهُمْ كَانَ خِطَاً كَبِيراً ۝

وَلَا تَقْتُلُوا	أَوْلَادَكُمْ	خَشْيَةَ	إِمْلَاقٍ	نَحْنُ	نَرْزُقُهُمْ
And do not kill	Your children	(for) fear	(of) poverty	We	(We) provide for them
وَإِيَّاكُمْ	إِنَّ	قَتْلَهُمْ	كَانَ	خِطَاً	كَبِيراً
And for you	indeed	Their killing	is	A sin	Great

And do not kill your children for fear of poverty. We provide sustenance to them and to you too. Killing them is a great sin indeed.

Ayah 31:- In this verse, Allah has forbidden us by killing children for fear of poverty, and reminded us that provision of sustenance is in Allah's control.

Explanation of Verse 31:-

According to an Arab tradition, some Arabs use to kill their female children.

Reasons:

1- Fear of poverty



2- Self made modesty

Islam neglected this most odious tradition.

Important point:

Family planning is also disliked in Islam.

Reasons:

1- It is based on fear of poverty.

2- Prophet wants his nation to be in a large number.

3- Wastage of wealth because it is useless.

عَا مَرَّةً قَسْرَةً كَانَتْ يَوْمَ الْقِيَامَةِ أَلَا وَهِيَ كَانَتْ

Any soul which is to come into being till the final day will come certainly.

إِذَا أَرَادَ اللَّهُ خَلْقَ شَيْءٍ لَمْ يَمْرَعْهُ شَيْءٌ

When Allah decides to create something, nothing can stop Him.

Ayah 32

وَلَا تَقْرُبُوا الزَّانِيَ إِنَّمَا كَانَ فَاحِشَةً وَسَاءَ سَبِيلًا ۝

وَلَا	تَقْرُبُوا	الزَّانِيَ	إِنَّمَا	كَانَ	فَاحِشَةً	وَسَاءَ	سَبِيلًا
And do not	Go near	adultery	Indeed, it	is	An immorality	And an evil	way

And do not even go close to fornication; it is indeed a shameful act and an evil way.

Main theme:

Directions & Command about fornication, this ayah reveals that fornication is strictly prohibited in Islam.

Explanation:

Islamic teachings about fornication tell us that fornication is a kind of sin which is a crime too and there is a punishment for it in here too as well as in hereafter. So, none should go even close to it.

Islamic teachings about fornication:

1- It is a shameful act and Allah does not like such acts.

قُلْ إِنَّ اللَّهَ لَا يَأْمُرُ بِالْفَحْشَاءِ (الاعراف: 28)

2- While committing such kind of sin, man comes out of faith.

إِذَا زَنَى الْعَبْدُ خَرَجَ بِهِ الْإِيمَانُ (ابوداود)

When a person commits fornication, the faith comes out of him.

3- It is an evil way which may cause for punishment in here and lead to Hell in hereafter except if Allah forgives it.

So,

1- Men & women should keep their sights down and also guard their private parts of bodies.

قُلْ لِّلْمُؤْمِنِينَ يَغُضُّوا مِنْ أَبْصَارِهِمْ وَيَحْفَظُوا فُرُوجَهُمْ (النور: 30)

Tell the believing men that they must lower their gazes and guard their private parts.

وَقُلْ لِّلْمُؤْمِنَاتِ يَغْضُضْنَ مِنْ أَبْصَارِهِنَّ وَيَحْفَظْنَ فُرُوجَهُنَّ (النور: 31)

And tell the believing women that they must lower their gazes and guard their private parts.

2- Women should not expose their adornment instead they should cover themselves by veils.

وَلَا يُبْدِينَ زِينَتَهُنَّ إِلَّا مَا ظَهَرَ مِنْهَا وَلْيَضْرِبْنَ بِخُمُرِهِنَّ عَلَىٰ جُيُوبِهِنَّ (النور: 31)

And they must not expose their adornment, except only that which is apparent, and must wrap their bosoms with their shawls.

يَا أَيُّهَا النَّبِيُّ قُلْ لِّأَزْوَاجِكَ وَبَنَاتِكَ وَنِسَاءِ الْمُؤْمِنِينَ يُدْنِينَ عَلَيْهِنَّ مِنْ جَلَابِيبِهِنَّ (الاحزاب: 59)

O Prophet! Tell your wives and your daughters and the women of the believers to draw down their shawls all over their bodies.

3- Other parts of body can also be involved in this sin and they must be protected too.

الْعَيْنَانِ تَزْنِيَانِ وَزَيْنَاهُمَا النَّظَرُ، وَالْيَدَانِ تَزْنِيَانِ وَزَيْنَاهُمَا الْبَطْشُ، وَالرِّجْلَانِ تَزْنِيَانِ وَزَيْنَاهُمَا الْمَشْيُ، وَزَيْنَا اللِّسَانِ الْمَنْطِقُ (متفق عليه)

The eyes commit fornication and their fornication is to watch, hands also commit fornication and their fornication is to catch, feet also commit fornication and their fornication is to walk, and the fornication of tongue is to talk.

Punishment in here:

1- 100 lashes for both man & woman if they are unmarried.

الرَّائِيَةُ وَالزَّانِي فَاجْلِدُوا كُلَّ وَاحِدٍ مِنْهُمَا مِائَةً جَلْدَةٍ (النور: 2)

The Fornicating woman and the fornicating man, flog each of them with a hundred stripes.

2-Stoning to death if they are married (as narrated in Sahih Al-Bukhari about Maaiz Aslami and the woman of Ghamdi tribe)

Punishment in hereafter:

1- Fire of Hell.

أَظْهَرَ الزُّنَى فِي قَرْيَةٍ فَقَدْ أَخْلَوْا بِأَنْفُسِهِمْ عَذَابَ اللَّهِ (الْحَاكِم)

When fornication becomes common in some town, they deserve the punishment from Allah.

Ayah 33

وَلَا تَقْتُلُوا النَّفْسَ الَّتِي حَرَّمَ اللَّهُ إِلَّا بِالْحَقِّ ۚ وَمَنْ قُتِلَ مَظْلُومًا فَقَدْ جَعَلْنَا لَوْلِيٍّ سُلْطَانًا فَلَا يُسْرِفُ فِي الْقَتْلِ ۚ إِنَّهُ كَانَ مَنصُورًا ۝

وَلَا	تَقْتُلُوا	النَّفْسَ	الَّتِي	حَرَّمَ اللَّهُ
And do not	kill	The soul	which	Allah has forbidden
إِلَّا	بِالْحَقِّ	وَمَنْ	قُتِلَ	مَظْلُومًا
except	By right	And whoever	(is) killed	wrongfully
جَعَلْنَا	لَوْلِيٍّ	سُلْطَانًا	فَلَا يُسْرِفُ	فِي الْقَتْلِ
We have made	For his heir	An authority	But he should not exceed	In
إِنَّهُ	كَانَ	مَنصُورًا		
Indeed, he	Is	helped		

And do not kill any person whose killing Allah has forbidden, except for a just reason, and whoever is killed unjustly we have given his heir the authority, but he must not cross the limit in the matter of killing, surely he is helped.

Main theme:

Directions about killing some person are mentioned in this Ayah.

Explanation:

Killing of every person is forbidden in Islam due to above mentioned Ayah except these three persons.

Allowed killing:

- 1- A murderer.
- 2- A married fornicator.
- 3- An apostate.

لَا يَجُزُّ دَمُ امْرِئٍ مُسْلِمٍ يَشْهَدُ أَنْ لَا إِلَهَ إِلَّا اللَّهُ وَأَنَّي رَسُولُ اللَّهِ إِلَّا بِأَخْذِ ثَلَاثٍ، أَلْنَفْسُ بِالنَّفْسِ وَالزَّانِي بِالزَّانِي وَالْمَارِقُ لِدِينِهِ

التَّارِكُ لِلْجَمَاعَةِ (متفق عليه)

Killing of a Muslim is forbidden who bears the witness that there is no god except Allah and I am a messenger of Him except one of three people, the person against a person, the married fornicator and the one who leaves one's religion (Islam).

Unjustly killing:

Killing without three reasons mentioned above is called as unjustly killing.

Types of killing:

- 1- Intentional killing.
- 2- Unintentional killing.

Punishment for intentional killing in here:

- 1- To be killed for equal retaliation (Qisas).
- 2- To be taken blood money (Diyat).
- 3- To be forgiven.

Note: In case of unintentional killing, last two options will be applicable and there will be no punishment in hereafter.

Right of Qisas:

For the Heir of victim or for the Head of state.

Instructions about revenge (retaliation):

- 1- Not to kill more than killer.
- 2- Not to kill other one than killer.
- 3- Not to kill in more brutal manner.
- 4- Not to kill beyond proper judicial process.
- 5- Not to take law in one's own hand.

Punishment for intentional killing in hereafter:

وَمَنْ يَقْتُلْ مُؤْمِنًا مُتَعَمِّدًا فَجَزَاؤُهُ جَهَنَّمُ خَالِدًا فِيهَا وَغَضِبَ اللَّهُ عَلَيْهِ وَلَعْنَةُ وَأَعَدَّ لَهُ عَذَابًا عَظِيمًا (النساء: ٩٣)

Whoever kills a believer deliberately, his reward is Hell where he will remain forever, and the anger and curse of Allah are upon him, and He has prepared a great punishment for him.

لَوْ أَنَّ أَهْلَ السَّمَاءِ وَالْأَرْضِ اشْتَرَوْا فِي دَمِ مُؤْمِنٍ لَأَكْبَهُمُ اللَّهُ فِي النَّارِ (ترمذی)

If everyone in the sky and earth join to kill a believer, Allah will put them all in Hell.

Ayah 34

وَلَا تَقْرَبُوا مَالَ الْيَتِيمِ إِلَّا بِالَّتِي هِيَ أَحْسَنُ حَتَّى يَبْلُغَ أَشُدَّهُ وَأَوْفُوا بِالْعَهْدِ إِنَّ الْعَهْدَ كَانَ مَسْئُولًا ۝

وَلَا	تَقْرَبُوا	مَالَ	الْيَتِيمِ	إِلَّا	بِالَّتِي
And do not	Come near	wealth	The orphan	except	With what
هِيَ	أَحْسَنُ	حَتَّى	يَبْلُغَ	أَشُدَّهُ	وَأَوْفُوا
(it) is	best	until	He reaches	His maturity	And fulfil
بِالْعَهْدِ	إِنَّ	الْعَهْدَ	كَانَ	مَسْئُولًا	
The covenant	indeed	The covenant	Will be	questioned	



And do not go near the property of an orphan, except in a manner that is good, until he comes to his maturity. And fulfil the covenant; surely the covenant will be questioned about.

Main theme:

This ayah reveals that the property of an orphan must be safe until he becomes mature and the promises must be fulfilled because these promises will be asked about on the day of judgment.

Explanation:

There are two different topics about which Allah has directed us to act upon these, one is related to the property of an orphan and the second one is related to the covenants and compacts.

Property of an orphan:

There are so many Ayaat in Qur'an which reveal the commandments of Allah about orphans and their properties. According to these Ayaat, to devour the property of an orphan unjustly is a great sin which can be the cause to push into Hell.

References:

وَأُولَئِكَ يَسْتَحْيُ أَمْوَالَهُمْ وَلَا تَتَّبِعُوا الْحَيِّثُ بِالظَّيْبِ وَلَا تَأْكُلُوا أَمْوَالَهُمْ إِلَى أَمْوَالِكُمْ إِنَّكَ كَانَ حُوبًا كَبِيرًا (النساء: ٢)

Give the orphans their property and do not substitute what is bad for what is good and do not eat up their property along with your own, it is surely a great sin.

إِنَّ الَّذِينَ يَأْكُلُونَ أَمْوَالَ الْيَتَامَىٰ ظُلْمًا إِنَّمَا يَأْكُلُونَ فِي بُطُونِهِمْ نَارًا وَهُمْ لَا يَبْصُرُونَ سَاعِيرًا (النساء: ١٠)

Surely, those who unjustly devour the property of the orphans, do nothing but devour fire into their bellies and soon they shall enter a blazing Hell.

أَنَا وَكَافِلُ الْيَتِيمِ فِي الْجَنَّةِ هَكَذَا

I and the cherisher of an orphan will be there in Heaven like this (He made sign with his first & middle finger)

What is a good manner?

Every possible way which cause to save and increase the wealth and property of an orphan just like as to invest in some business or to purchase some property.

Age of maturity:

Legal limit: 18 years for both girls and boys.

Islamic law: 15 years for boys and 14 years for girls.

Maturity means to be able to understand profit and loss, so the legal limit would be followed today.

Directions about covenants:

To fulfill the promises and agreements is the most important part of Islamic education as the followers of Islam have been incited to fulfil their covenants.

Types of covenants:

- 1- Promises with Allah The Lord.
- 2- Promises with human beings.

Covenants with Allah Almighty:

There are two promises with Allah.

- 1- Covenant famous as the initial covenant taken from all human beings before they would be sent to the world as it is mentioned in Al-A'raaf ayah 172.

وَإِذْ أَخَذَ رَبُّكَ مِنْ بَنِي آدَمَ مِنْ ظُهُورِهِمْ ذُرِّيَّتَهُمْ وَأَشْهَدَهُمْ عَلَى أَنْفُسِهِمْ أَلَسْتُ بِرَبِّكُمْ قَالُوا بَلَى

- 2- Accepting Islam is also a covenant with Allah to be followed all of His commandments. As Allah says,

وَأَوْفُوا بِعَهْدِ اللَّهِ إِذَا عَاهَدْتُمْ وَلَا تَنْقُضُوا الْأَيْمَانَ بَعْدَ تَوْكِيدِهَا (النحل: ٩١)

And fulfil the covenant of Allah when you pledge, and do not break oaths after you swear them solemnly.

Covenants with human beings:

These promises can also be divided into two types.

- 1- One sided covenant as some person promises to other.

وَالَّذِينَ هُمْ لِأَمْتِهِمْ وَعَهْدِهِمْ رِعُونَ (المؤمنون: ٨)

And (success is attained) by those who honestly look after their trusts and covenants.

- 2- Double sided covenants which are known as agreements and compacts.

يَا أَيُّهَا الَّذِينَ آمَنُوا أَوْفُوا بِالْعُقُودِ (المائدة: ١)

O you, who believe, fulfil the contracts.

Note: This ayah covers all types of covenants and compacts.

References:

لا ايمان لمن لا عهد له

No faith (is completed) for one who does not care for covenant.

آية المنافق ثلاث اذا حدث كذب، و اذا وعد اخلف، و اذا اتمن خان (بخارى)

There are three signs for a hypocrite, whenever speaks, tells a lie. Whenever promises, breaks it. Whenever is entrusted, embezzles it.

Ayah 35

وَأَوْفُوا الْكَيْلَ إِذَا كِلْتُمْ وَزَنُوا بِالْقِسْطِ الْمُسْتَقِيمِ ۚ ذَٰلِكَ خَيْرٌ وَأَحْسَنُ تَأْوِيلًا ۝

وَأَوْفُوا	الْكَيْلَ	إِذَا	كِلْتُمْ	وَزَنُوا	بِالْقِسْطِ
And give full	measure	when	You measure	And weigh	with the balance
الْمُسْتَقِيمِ	ذَٰلِكَ	خَيْرٌ	وَأَحْسَنُ	تَأْوِيلًا	
The straight	that	good	And best	(in) result	

And give full measure when you measure and weigh with a straight balance, that is fair and better in the end.

Main theme:

Directions about measurement and weight age.

Explanation:

Islam is a complete code of life, so it gives us the directions about every aspect of life. According to Qur'an, cheating in measurement or weight age is a great sin and the nation of Shoaib (Alaihis Salam) was destroyed due to same reason as mentioned in Surah Al-Aaraaf, Rukoo No: 11, Hood, Rukoo No: 8, Ash-Shu'araa, Rukoo No: 10.

References:

أَوْفُوا الْكَيْلَ وَلَا تَكُونُوا مِنَ الْخَاسِرِينَ ۝ وَزِنُوا بِالْقِسْطِ الْمُسْتَقِيمِ ۝

Give full measure, and do not be among those who bring loss to others. And weigh with an even balance. (Ash-Shu'araa: 181, 182)

وَيْلٌ لِّلْمُطَفِّفِينَ ۚ الَّذِينَ إِذَا اكْتَالُوا عَلَى النَّاسِ يَسْتَوْفُونَ ۖ وَإِذَا كَالُوهُمْ أَوْ وَزَنُوهُمْ يُخْسِرُونَ ۚ

Woe to the curtailers. Who, when they measure something for the people, take it in full. And when they measure or weigh something to give to them, give less than due. (Al-Mutaffifeen: 1, 2, 3)

Note:

- 1:- To weigh straight or to give full measurement is the duty and responsibility of the selling person and he will be asked about on the day of judgment.
- 2:- That is fair means good in Here to establish a better society. And better in the end means better in Hereafter to get the pleasure of Allah Almighty.

Ayah 36

وَلَا تَقْفُ مَا لَيْسَ لَكَ بِهِ عِلْمٌ ۚ إِنَّ السَّمْعَ وَالْبَصَرَ وَالْفُؤَادَ كُلُّ أُولَٰئِكَ كَانَ عَنْهُ مَسْئُولًا ۝

وَلَا تَقْفُ	مَا	لَيْسَ	لَكَ	بِهِ
And do not pursue	what	not	You have	Of it
عِلْمٌ	إِنَّ	السَّمْعَ	وَالْبَصَرَ	وَالْفُؤَادَ
Any knowledge	indeed	The hearing	And the sight	And the heart
كُلُّ	أُولَٰئِكَ	كَانَ	عَنْهُ	مَسْئُولًا
all	those	Will be	About it	questioned

And do not follow a thing about which you have no knowledge, surely, the ear, the eye and the heart, each of them shall be interrogated about.

Main theme:

A golden rule about social life is discussed that none should follow a thing about which he is not sure and has no confirmation about it.

Explanation:

Knowledge means to be sure about something in an absolute way. Islam educates its followers to not to follow the whims and conjectures, but just follow the premises based on true knowledge.

References:

يَا أَيُّهَا الَّذِينَ آمَنُوا اجْتَنِبُوا كَثِيرًا مِّنَ الظَّنِّ ۖ إِنَّ بَعْضَ الظَّنِّ إِثْمٌ (الحجرات: ١٢)

O you! Who believe, abstain from many of the suspicions. Some of the suspicions are sins.

كُنْفَىٰ بِالْمَرْءِ كَذِبًا أَنْ يُحَدِّثَ بِكُلِّ مَا سَمِعَ

Enough for a man to be a liar that he narrates whatever he listens.

Note:

The ears and the eyes are the major sources of knowledge and the heart is the driver of the whole body and the centre of wisdom and knowledge.



Ayah 37

وَلَا تَمْشِ فِي الْأَرْضِ مَرَحًا إِنَّكَ لَنْ تَخْرِقَ الْأَرْضَ وَلَنْ تَبْلُغَ الْجِبَالَ طُولًا ﴿٣٧﴾

وَلَا تَمْشِ	فِي	الْأَرْضِ	مَرَحًا	إِنَّكَ	لَنْ
And do not walk	in	The earth	(with)isolence	Indeed, you	Will never
تَخْرِقَ	الْأَرْضَ	وَلَنْ	تَبْلُغَ	الْجِبَالَ	طُولًا
tear	The earth	And will never	reach	The mountains	(in)height

And do not walk on earth arrogantly, you can neither rend the earth nor you can match the mountains in height.

Main theme:

Status of pride and arrogance in Islam has been discussed in it.

Explanation:

Islam is the religion that teaches the followers to be humble and meek, so the arrogance and pride is disliked and forbidden in Islam and is considered as a great sin.

References:

1- Satan was rejected and cursed due to arrogance.

He waxed proud, and became one of the disbeliever. (ص: 74)

قَالَ أَنَا خَيْرٌ مِّنْهُ خَلَقْتَنِي مِن نَّارٍ وَخَلَقْتَهُ مِن طِينٍ (ص: 76)

He said, "I am better than him. You created me from fire and created him from clay".

2- Qaroon was swallowed by earth due to same reason.

فَخَفَفْنَا بِهِ وَبَدَارِدِ الْأَرْضَ (القصص: ٨١)

3- Arrogance and haughtiness is strictly prohibited in Islam.

إِنَّ اللَّهَ لَا يُحِبُّ مَن كَانَ مُخْتَالًا فَخُورًا (النساء: 36)

Surely, Allah does not like those who are arrogant, proud.

أَلَيْسَ فِي جَهَنَّمَ مَثْوًى لِّلْمُتَكَبِّرِينَ (الزمر: 60)

Is it not that in Jahannam there is an abode for the arrogant?

لَا يَدْخُلُ الْجَنَّةَ أَحَدٌ فِي قَلْبِهِ مِثْقَالُ ذَرَّةٍ مِّنْ كِبَرٍ (مسلم)

Whosoever has pride in his heart equal to the weight of an atom (or a small ant) shall not enter paradise.

الْكِبْرُ بَطْرُ الْحَقِّ وَ غَمَطُ النَّاسِ (مسلم)

Pride is to completely disregard the truth and to scorn the people.

Ayah 38

كُلُّ ذَلِكَ كَانَ سَيِّئُهُ عِنْدَ رَبِّكَ مَكْرُوهًا ۝

كُلُّ	ذَلِكَ	كَانَ	سَيِّئُهُ	عِنْدَ	رَبِّكَ	مَكْرُوهًا
all	that	is	(its)evil	near	Your Lord	hateful

The evil of all these is hateful to your Lord.

Main theme:

All the commandments mentioned in last fifteen Ayaat are containing on abstaining from evils, because Allah does not like all these evils.

Ayah 39

ذَلِكَ مِمَّا أَوْحَى إِلَيْكَ رَبُّكَ مِنَ الْحِكْمَةِ ۚ وَلَا تَجْعَلْ مَعَ اللَّهِ إِلَهًا آخَرَ فَتُلْقَى فِي جَهَنَّمَ مَلُومًا مَدْحُورًا ۝

ذَلِكَ	مِمَّا	أَوْحَى	إِلَيْكَ	رَبُّكَ	مِنْ
That	For what	(was)revealed	To you	Your Lord	of
الْحِكْمَةِ	وَلَا	تَجْعَلْ	مَعَ	اللَّهُ	إِلَهًا
The wisdom	And do not	Make	with	Allah	god
آخَرَ	فَتُلْقَى	فِي	جَهَنَّمَ	مَلُومًا	مَدْحُورًا
other	Lest you should be thrown	in	Hell	blameworthy	abandoned

This is part of wisdom which your lord has revealed to you, and do not set up any other god along with Allah, lest you should be thrown into Hell reproached, rejected.

Main theme:

All the commandments given in last sixteen Ayaat are called as Al-Hikmah (the wisdom), and the concept of polytheism has been denied in this Ayah.

Explanation:**Part 1:-**

The Ayah reveals that all the commandments given in last sixteen Ayaat are based on wisdom. Because all the forbidden things are among those of bad deeds that their evil can easily be realised by every person who has a little bit of wisdom.

There are three reasons for calling these directions as Al-Hikmah:

1- It is very easy for every person who has wisdom to realise the evil of all these forbidden things.



2- Allah is the creator of mankind and He knows best about the betterment of mankind and their society. So, all of His commandments have a lot of aspects of betterment in favour of mankind and the human society.

3- Islamic teachings are based on wisdom, and the knowledge about Islamic teachings is in fact something good enough. So, whosoever is granted knowledge of Islam, he is granted a lot of good and wisdom.

References:

يُؤْتِي الْحِكْمَةَ مَنْ يَشَاءُ وَمَنْ يُؤْتَ الْحِكْمَةَ فَقَدْ أُوتِيَ خَيْرًا كَثِيرًا (البقرة: 269)

He gives wisdom to whom He wills, and whoever is given wisdom is certainly given a lot of good.

مَنْ يُرِدِ اللَّهُ بِشَيْءٍ يُفَوِّضْهُ فِي الدِّينِ

The one, to whom Allah likes to make good in his favour, He grants him the knowledge of religion (Islam).

Part 2:-

In the second part of Ayah, Allah has forbidden again from chief evil, setting partner with Allah known as Shirk & polytheism.

Ayah 40

أَفَأَصْفُكُمْ رَبُّكُمُ بِالْبَنِينَ وَاتَّخَذَ مِنَ الْمَلَائِكَةِ إِنَاثًا إِنَّكُمْ لَتَقُولُونَ قَوْلًا عَظِيمًا

أَفَأَصْفُكُمْ رَبُّكُمُ					
The has your Lord chosen (for) you					
مِنْ	وَاتَّخَذَ	بِالْبَنِينَ			
from	And He has taken	sons			
		لَتَقُولُونَ	إِنَّكُمْ	إِنَاثًا	الْمَلَائِكَةِ
عَظِيمًا	قَوْلًا		Indeed, you	daughters	The angels
grave	A word	Surely say			

Has then your lord chosen for you sons and opted for Himself females from among the angels? Surely, you are uttering a serious statement.

Main theme:

A specific type of polytheism has been denied in this Ayah.

Explanation:

Background:-

Before Islam, the pagans of Arabia believed that males were superior and females were inferior. They also believed that angels were females and were daughters of Allah. If we combine both of the beliefs, the result comes out as their children were more superior than Allah's children.

So, first, they set children for Allah Almighty, and then, they set inferiority for Allah's children. It was a fatal type of Shirk which was denied in this Ayah.

Reference:

فَاسْأَلْهُمْ رَبُّكَ الْبَنَاتُ وَلَهُمُ الْبَنُونَ ۖ أَمْ خَلَقْنَا الْمَلَائِكَةَ إِنَاثًا وَهُمْ شَاهِدُونَ ۚ أَلَا إِنَّهُمْ قَوْمٌ لَّيْقُلُونَ ۚ ۝ وَلَكِنَّ اللَّهَ وَرُسُلَهُ لَكَذِبُونَ ۚ أَصْطَفَى الْبَنَاتِ عَلَى الْبَنِينَ ۚ مَا لَكُمْ كَيْفَ تَحْكُمُونَ ۚ أَفَلَا تَتَذَكَّرُونَ ۚ

So ask them, "Does your lord have daughters while they have sons"? Or, have We created angels as females while they were witnessing? Beware! They are ones who, by way of a lie of theirs, (have the audacity to) say, "Allah has children", and they are absolute liars. Is it that Allah has chosen daughters (for Himself) instead of sons? What is the matter with you? How (arbitrarily) do you judge? Then is it that you do not think about it? (As-Saffaat: 149 to 155)



Social system of Islam

Islam is a complete code of life which is based upon divine commandments revealed by Allah, the creator and the owner of entire mankind and all other creatures, to Mohammad (Sallallahu Alaihi Wa Sallam) the last of His messengers and apostles.

Man, on account of his nature, is called as social animal. According to this nature, they are bound to live together and as a result a society is established. Islam, being a code for life, does not leave this important part of human life and grants a wonderful system for its believers. This social system of Islam, in case if it is applied and followed properly, makes the society utmost peaceful and an example of paradise in the world.

Islamic social system, by the dealings in between human beings, can be divided into two categories.

Sorts of dealings:

1- Social dealings:

All kinds of relations in between mankind and the classification of duties & rights between them are called as social affairs. This category is the part of our study plan.

2- Money dealings:

All kinds of agreements in between mankind in which money or any other asset is involved like sale, purchase, leasing, loan, usury, mortgage, trust etc are included. This is also called as corporate laws of Islam and is a vast part of Islamic teachings.

Social affairs:

Islam has provided a solid base and perfect root level guidance for its social system to make the society stable, durable and peaceful hence it may set an example for rest of the societies. Besides, Muslim society has been divided into different units so that the society members may recognize his rights and duties towards these fundamental units as a member of it. Here these are the basic foundations for Islamic society and the units given below.

Foundation for social system:

1- Equality

2- Equity/ Justice

3- Brotherhood

4- Unity

5- Sympathy

- 6- Sacrifice
- 7- Tolerance
- 8- Duty
- 9- Rights

Different units of Muslim society:

Islamic society, just like all other societies, is a collective mass of different units. Here these are the fundamental units of Muslim society given below,

- 1- Family
 - 2- Relatives
 - 3- Neighbours
 - 4- Mosque/Town.
 - 5- City.
 - 6- State.
 - 7- Ummah (The nation)
-

1- Equality
According to this
Ayah 1:
"O man
it created its
Surah Al-Huj
"O man
into races an
The F
religion and
increased an
dresses, life
But I
freedom as
a Muslim so
Reference:
In his add
"O p
supremacy
neither for
2- Equity
Islam
of Allah th
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Foundations for Muslim society

1:- Equality:

According to Islam, all human beings are originated by one couple Adam and Eve and this couple was created by Almighty Allah. He reveals in Surah An-Nisaa Ayah 1:

"O men! Fear your Lord who created you from a single soul (Adam), and from it created its match (Eve), and spread many men and women from the two." Surah Al-Hujuraat Ayah 13, Allah says:

"O mankind! We have created you from a male and a female, and made you into races and tribes, so that you may identify one another".

The progeny of this couple were initially a single group of people with one religion and same language. But, with the passage of time, their number gradually increased and they spread all over the earth and as a natural result, their languages, dresses, life style and thinking varied and widely differed.

But Islam describes that all human beings have equal rights of living and freedom as they are the offspring of one couple. There is no concept of VIP culture in a Muslim society.

Reference:

In his address at last Hajj, prophet (Sallallahu Alaihi Wa Sallam) said,

"O people! Surely, your lord is one and your father is one. Beware! There is no supremacy for any Arabian over Ajami (Non Arabian) or for Ajami over Arabian, neither for white over black nor for black over white except with piety".

2:- Equity/ Justice:

Islam has the quality to provide justice to all and justice has been set as a right of Allah the Exalted to maintain peace & harmony in the society. In an Islamic society, every single person should be treated with equal justice if he deserves it on account of witnesses and evidences. All those elements which cause injustice in the society like bearing wrong witnesses, hiding facts, emotions, pressurizing, VIP culture, obeying illegal commands or any other possible cause are strictly condemned.

Allah says:

"And maintain justice, surely Allah loves those who maintain justice". (Al-Hujurat, 9)

By the study of Qur'an, we come to know that looking to the weak points of human psyche; Almighty Allah has particularly prohibited two of the human emotions to be the cause for injustice, love and hatred.

References:

Allah says:

"O you who believe; Be upholders of justice, as witnesses to Allah, even though it be against (the interest of) yourselves or the parents or the kinsmen, one may be rich or poor, Allah is better caretaker of both. So follow not the desires, lest you may

avoid justice. If you distort or avoid (the witness), then Allah is all-aware of what you do". (An-Nisaa, 135)

He further says:

"O you who believe! Be steadfast for (obeying the commands of) Allah as witnesses for justice, malice against a people should not make you avoid justice, make justice as it is nearer to piety (Taqwa), and fear Allah, indeed, Allah is all-aware of what you do". (Surah Al-Ma'idah, 8)

3:- Brotherhood:

According to Islamic teachings, all the Muslims, wherever they live, whatever the cast, colour and language they belong to, are brothers and they must behave with each other like real brothers. They should treat each other in a way that may not hurt or not cause to annoy anyone in the society. A Muslim should neither oppress or tyrannize his Muslim brother nor let others do so.

Reference: Allah says:

"All the believers are but brothers, so seek reconciliation between two of your brothers, and fear Allah, so that you may be blessed with mercy". (Al-Hujurat, 10)s

Prophet (Sallallahu Alaihi Wa Sallam) said:

"Every Muslim is a brother of other Muslim; neither oppresses him nor gives in other's custody".

4:- Unity:

Unity is also one of the basics of Islamic social system. It is very much stressed upon unity and collectiveness in Islam and Islam drives its followers to get as united as bricks in a wall or different parts in a body. Qur'an refers to the end result of weakness and disgrace in the world in case if Muslims get divided into various sectors either religiously or politically.

As per Qur'an, it is a great sin & fault departing from the collectiveness of the believers and there is a serious threat of hell from Allah the Exalted for such people who set some separate sector or way for themselves.

Reference: Allah says:

"And hold fast, all of you together, to the cord of Allah, and be not divided". (Aali-Imraan, 103)

He further says:

"And obey Allah and His messenger, and do not quarrel with each other, lest you should lose courage, and your prowess should evaporate, and be patient, surely Allah is with the patients". (Al-Anfaal, 46)

5:- Compassion & Sympathy:

According to Islamic teachings, every member in a Muslim society must have the sympathetic feelings for all of the believers. This characteristic is must to be adopted by Muslims that they should be kind, compassionate and sympathetic to

each other. Harshness and tyranny is strictly condemned in Islam particularly against a Muslim.

Islam refers to the duty of condolence for the Muslims who suffer from any disease, loss or any misfortune. It has also been considered as a great good deed which is rewardable as well in Islam and has been declared as a right of relatives and neighbours too.

Reference: Allah says:

"And those who spend (for Allah's sake) in prosperity and in adversity, and those who control anger and forgive people, and Allah loves those who are good in their deeds". (Aali-Imran, 134)s

Prophet (Sallallahu Alaihi Wa Sallam) said:

"Surely, Allah is kind and He likes the kindness". (Muslim)

He further said:

"Be merciful upon those on earth, the One in the sky (Allah) will be merciful upon you".

6:- Sacrifice:

Islam teaches its followers to not to be selfish, greedy or egocentric. Instead, it commands to live for others in a way that you should prefer them over yourself. This is also a well appreciated good deed in Islam as it leads the society to its best.

Allah says:

"And (they) give preference (to others) over themselves, even though they are in poverty, and those who are saved from the greed of their hearts are the successful". (Al-Hashr, 9)

7:- Tolerance:

Tolerance is also an important teaching of Islam regarding the establishment of a peaceful Muslim society. Islam has clearly categorised the duties and the rights to the society members, and has emphasised its followers to not to cause any mischief in the society by taking some harsh step in case of not receiving the due right. Instead, Islam refers to the patience and ignoring it to avoid the disturbance in harmony and peace. As per Islamic teachings, surrendering from the right to avoid the mischief is a great good deed that leads to ultimate reward from the Lord particularly in afterlife.

Prophet (Sallallahu Alaihi Wa Sallam) said:

"Whoever surrenders from the dispute (of his right) even though the truth lies with him, a house is built for him in the paradise".

8:- Forgiveness:

Forgiving the people upon their mistakes is also an Islamic teaching that provides a solid foundation for maintaining peace and harmony in the society. This is what Islam stresses upon it and appreciates. Yet, this is not a law in Islam to forgive

all of the mistakes even the crimes of an offender; it may cause the villainies and the lawlessness in the society.

Instead, it is conditional and in some cases the punishment is also recommended to discourage the villainous people and bully peace breakers. Along with the promotion of forgiveness, the even retaliation especially in offences of murder or grievous hurts (i.e. Qisas) is also encouraged in Qur'an.

Allah says:

"There is life for you in *Qisas* O people of wisdom, so that you may be secured".

9:- Duty:

Duty and the responsibility is also the part of the basics of Islamic teachings towards a society. Islam insists upon its followers to be dutiful and responsible towards their units. These duties have been assigned by the Lord and are clearly classified to every individual.

This is a burning hot issue of contemporary times that in all the societies, man is given some rights and he is stressed upon receiving his due rights by hook or by crook which is badly effecting the peace in the societies.

Instead, in Islam, man has been decreed to fulfil his duty towards others rather than demanding the rights and this, in the end result, causes the rights to be delivered naturally to the deserving ones without any disturbance and mischief. To become a good Muslim, every individual should perform his duty gladly which is actually the right of others.

Reference: Allah says:

"And give the relative his right and the needy and the wayfarer, and do not spend wastefully". (Bani Isra'il, 26)

10:- Rights:

Every individual, in a Muslim society, deserves the due rights on the basis of equality and no one is allowed to deprive him from any of his rights. These rights have been preserved and described by Allah and his Prophet (Sallallahu Alaihi Wa Sallam) in details.

Reference: Allah says:

"So give to the kinsman his right, and to the needy and the wayfarer. That is better for those who seek Allah's pleasure, and it is they who will be successful". (Ar-Room, 38)

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Rights:

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3:- Neighbours

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Rights:

- 1- Neighbour
- 2- Neighbour

Different units of Muslim society

1:- Family:

This is very first unit of Muslim society as it is very close circle a man is related to. A family is a collective mass of some persons like father, mother, husband, wife and children. According to Islam, every single person is committed to perform his duties towards his family whether he/she is a father/mother or husband/wife or a child.

In a family, every person deserves some rights and also assigned some duties. To become a good Muslim, every individual should perform his duty gladly which is in fact the right of other family members.

Rights:

- 1- Rights of parents.
- 2- Rights of husband.
- 3- Rights of wife.
- 4- Rights of children.
- 5- Rights of brother.
- 6- Rights of sister.

2:- Relatives:

The second unit of Islamic society is the circle of relatives which is in fact a collective mass of few families. It is a little wider circle and every individual member of this unit is responsible for the rights of other unit members.

Rights:

- 1- Rights of uncles & aunties.
- 2- Rights of nephews & nieces.
- 3- Rights of cousins.
- 4- Rights of in-laws.
- 5- Other members like father's or mother's cousins.

3:- Neighbours:

Islam has enjoined strictly upon its followers to be dutiful towards their neighbours as one is not considered as a complete Muslim whose neighbours are not satisfied and happy with him. Neighbours can be divided into three categories by the rights.

Rights:

- 1- Neighbour + Muslim + relatives.
- 2- Neighbour + Muslim.

3- Neighbour + Non-Muslim.

4- Neighbour in some assembly. (Temporary neighbour)

References: Allah reveals:

"Worship Allah, and do not associate with Him anything, and be good to parents and to kinsmen and orphans and the needy and the close neighbour and the distant neighbour and the companion at your side and the wayfarer and to those (slaves who are) owned by you. Surely, Allah does not like those who are arrogant, proud". (An-Nisaa, 36)

Prophet (Sallallahu Alaihi Wa Sallam) said:

"I swear by Allah, he is not a real Muslim whose neighbour is not safe from his harm". (Muslim)

4:- Mosque/ Town:

This is fourth circle of a Muslim society.

5:- City:

City level is the fifth circle of society.

6:- State:

State is the sixth unit level in a society.

7:- Ummah (The nation):

Being a member of Muslim Ummah, every person is responsible for its welfare.

Political System of Islam

Definition of Politics

"Politics from Greek 'politikos' as a term is generally applied to the art or science of running governmental or state affairs."

Religion and politics are one and the same in Islam. They are intertwined. There is no separation between religion and politics in Islam. We already know that Islam is a complete system of life and politics is very much a part of our collective life. Just as Islam teaches us how to say Salah, observe Saum, pay Zakah and undertake Hajj, so it teaches us how to run a state, from a government, elect councilors and members of parliament, make treaties and conduct business and commerce. Bear in mind that Islamic ruling system is not the same as the ruling system we have in the non-islamic countries.

In brief, the political system of Islam is based on three principles:

- 1) TAWHID (unity of God)
- 2) RISALAT (prophethood)
- 3) KHILAFAT (vicegerency)

TAWHID means that only God is the Creator, Sustainer, and Master of the universe and all that exists in it, organic and inorganic. The sovereignty of this kingdom is vested in Him. He also has the right to command or forbid, and His commandments are the law. The medium through which we receive the law of God is known as RISALAT. We have received two things from this source: The Quran, and the authoritative interpretation and exemplification of the Quran by the Prophet in his capacity as the representative of God.

The Prophet [Muhammad peace and blessings of Allah be upon him] has also, in accordance with the intention of Quran, given a model for the Islamic way of life by himself implementing the law and providing necessary details where required. The combination of these two elements is called the SHARI'AH. KHILAFAT means "representation". Man [i.e. human beings], according to Islam, is the representative of God on earth, His vicegerent. That is to say, by virtue of the powers delegated to him by God, he is required to exercise his God-given authority in this world within the limits prescribed by God.

The Islamic Political System is based on the following main principles:

1. Sovereignty of Allah swt.

Sovereignty means the source of power. In Islam, Allah is the source of all powers and laws, The Quran Says:

إِنَّ الْحُكْمَ إِلَّا لِلَّهِ (يوسف: 40)

Sovereignty belongs to none but Allah.

It is Allah who knows what is good and what is bad for His servants. His say is final. All human beings unitedly cannot change His law. The Qur146an says:

وَالسَّارِقُ وَالسَّارِقَةُ فَاقْطَعُوا أَيْدِيَهُمَا جِزَاءً بِمَا كَسَبَا تَكَوَّنَ اللَّهُ وَأَلَّهُ عَزِيزٌ حَكِيمٌ (المائدة: 38)

"As for the thief - male and female, chope off their hands. It is the reward of their own actions and deterrent punishment from Allah. Allah is Mighty, Wise."

According to Islam, this order is unchangeable by any parliament or any government which claims itself to be Islamic. There are many more laws in the Qur146an concerning our life and those laws must be put to practice by an Islamic state for the greater good of human beings.

2. Khilafah of Mankind (Vicegerency of man)

Man is the vicegerent, the agent or the representative of Allah swt on earth. Allah is the sovereign and man is His representative.

The Quran says:

وَهُوَ الَّذِي جَعَلَكُمْ خَلَائِفَ الْأَرْضِ وَرَفَعَ بَعْضَكُمْ فَوْقَ بَعْضٍ دَرَجَاتٍ لِّيَبْلُوَكُمْ فِي مَا آتَاكُمْ إِنَّ رَبَّكَ سَرِيعُ الْعِقَابِ وَإِنَّهُ لَغَفُورٌ رَحِيمٌ (الانعام: 165)

It is he who made you the vicegerents of the earth and raised some of you in ranks over others, so that He may test you in what He has given you. Surely, your Lord is swift in punishing, and surely He is Most Forgiving, Very-Merciful.

Man should do as Allah commands him to do. But he has a choice to either obey or disobey Allah and, because of this freedom of choice, he will be tested on the day of judgment.

In the political sense, Khilafah means that human beings should implement the will of Allah on earth as His deputy or agent. As Allah's agents, human beings will carry out the will of Allah swt on His behalf as a trust (Amanah). Khilafah is a trust. An agent is always expected to behave as his master wants him to behave.

3. Legislation by Shura (Consultation)

Islam teaches us to run a government, to make legislation and decisions by the process of Shura. Shura means "to take decisions by consultation and participation"

Allah taala orders to Prophet Muhammad (PBUH) to consult his companions:

وَشَاوِرْهُمْ فِي الْأَمْرِ (آل عمران: 159)

"And consult them in the matters."

This is an important part of the Islamic political system. There is no scope for despotism and tyranny in Islam. The Quran and the Sunnah will be the basis of legislation in Islam.

4. Accountability of government

The Islamic political system makes the ruler and the government responsible firstly to Allah and then to the people. The ruler and the government are elected by the people to exercise powers on their behalf. We must remember here that both the ruler and the ruled are the Khalifah of Allah and the ruler shall have to work for the welfare of the people according to the Quran and Sunnah. A ruler is a servant of the people of Islam. Both the ruler and the ruled will appear before Allah swt and account for their actions on the Day of Judgment. The responsibility of the ruler is heavier than the ruled. Any ordinary citizen of an Islamic state has the right to ask any question on any matter to the ruler and the government.

5. Independence of judiciary

In the Islamic political system, the Judiciary is independent of the Executive. The head of the state or any government minister could be called to the court if necessary. They would be treated no differently from other citizens. The Quran has many injunctions about justice. One of the main functions of the Islamic state is to ensure justice to all citizens (4:58). The ruler and the government has no right to interfere in the system of justice.

6. Equality before law

The Islamic political system ensures equality for all citizens before the law. It does not recognise any discrimination on the basis of language, colour, territory, sex or descent. Islam recognises the preference of one over the other only on the basis of Taqwa (piety or fear of God). One who fears Allah swt most is the noblest in Islam (49:13).

Differences between Western democracy and Khilafat

Western democracy is based on the concept of popular sovereignty; an Islamic political order rests on the principle of POPULAR KHILAFAT. In western democracy the people are sovereign, but in Islam sovereignty is vested in God and the people are his caliphs or representatives. In the former the people make their own laws; in the latter they have to follow and obey the laws (Shari'ah) given by God through His Prophet. In one the government undertakes to fulfill the will of the people; in the other the government and the people alike have to do the will of God. Western democracy is a kind of absolute authority which exercises its powers in a free and uncontrolled manner, whereas Islamic democracy is subservient to the Divine Law and exercises its authority in accordance with the injunctions of God and within the limits prescribed by him [for the benefit and welfare of the entire society].

Conclusion

The duty of an Islamic state is to establish Salah and Zakah; promote the right and forbid the wrong (22:44). The state is responsible for the welfare of all its citizens - Muslims and non-Muslims alike. It must guarantee the basic necessities of life. All citizens of the Islamic state shall enjoy freedom of belief, thought, conscience and speech. Every citizen shall be free to develop his potential, improve his capacity, earn and possess. A citizen shall enjoy the right to support or oppose any government policy which he thinks right or wrong with the following in mind. The Islamic state is a duty bound to implement the laws of the Qur'an and the Sunnah. The Qur'an strongly denounces those who do not decide their matters by Allah's revelations. The Islamic state shall ensure a fair distribution of wealth. Islam does not believe in equal distribution as it is against the law of creation.

There is not a single perfect Islamic state in the world today. There are many Muslim countries. An Islamic state is based on the model of Prophet Muhammad's (pbuh) state in Madinah while a Muslim state is one which has a majority Muslim population and some Islamic features. However, organised efforts have been going on in many Muslim countries to establish truly Islamic states. These efforts have been going on by some of the Islamic movements and parties which have been working for the re-establishment of Allah's law on Allah's land.

Judicial system of Islam

Definition of Judiciary

"The judiciary (also known as the judicial system) is the system of courts that interprets and applies the law in the name of the state."

The judiciary also provides a mechanism for the resolution of disputes. Under the doctrine of the separation of powers, the judiciary generally does not make law (that is the responsibility of the legislature) or enforce law (which is the responsibility of the executive).

Need and Importance

Man is a social being by nature. He cannot live perpetually on his own, completely independent of others. People are interdependent. Consequently, friction and dispute arise between them when their personal interests come into conflict with each other, or when what they perceive as their individual rights infringe upon those of others. Conflicts between them inevitably break out. In some cases, one party to the conflict might be strong and aggressive while the other is weak and condescending, incapable of defending his rights. Because of this, it becomes necessary for there to be a way to prevent people from oppressing one another, to ensure that the weaker members of society receive justice, and to determine right from wrong when issues get complicated or uncertain. This can only be realized through a judge that has the power to give legal verdicts in cases of dispute.

For this reason, we find that the existence of a judge is considered by Islamic law and the laws of all the other revealed religions to be both a religious obligation and a necessity of human life. Allah says:

"We have sent Messengers with clear proofs, and sent down with them the Scripture and the Balance that mankind can establish justice."

Islam - the religion that Allah wants for mankind from the time that He sent Muhammad (may he peace and blessings of Allah be upon him) until the Day of Judgment - shows great concern for the judicial system and those appointed to carry out its responsibilities. Islam prescribes for it many legal injunctions. How else could it be, when Islam is the religion of mercy, equality, and justice? It is the religion that comes to free people from worshipping Creation and bring them to the worship of Allah. It is the religion that comes to remove people from oppression and iniquity and bring them to the highest degree of justice and freedom.

Here is a brief look at some of the main features of administration of justice in Islam.

1. Supremacy of law

In Islamic legal system, no ruler and no official can claim to be above the law. No acts, procedures, and decisions of any authority, howsoever high it may be, can be valid and binding as to the people they affect, save to the extent they are in consonance with the law.

2. Equality before law

The Quran and the Sunnah, which are the primary sources of Islamic law, put great emphasis on equality. Consequently, in Islamic legal system there cannot be one law for the ruler and one for the subject; one for the powerful and one for the weak; one for the rich and one for the poor. Government authorities enjoy no special privileges or immunities from the application of law. Even the Prophet of Islam did not consider himself or his family above the law. Instead of claiming any immunity from the law, he laid down the rule that even the head of the state may be challenged, in both official and private capacity, in the court. The following statement of the Prophet (PBUH) which he made while deciding the case of a noble woman who had committed theft, demonstrates it all:

Verily those who were before you were destroyed because when a noble man from among them committed theft, they passed no sentence on him. By Allah, had Fatima, the daughter of Muhammad, committed theft, I would have cut off her hand.

Also, during the course of his last sermon, the Prophet publicly offered to the community that if he owed anything to anyone, or had done any harm to anyone's life or property, he was available to answer for it.

3. Judicial impartiality

The Quran says:

إِنَّا أَنزَلْنَا إِلَيْكَ الْكِتَابَ بِالْحَقِّ لِتَحْكُمَ بَيْنَ النَّاسِ بِمَا أَرَاكَ اللَّهُ وَلَا تَكُنْ لِلْخَائِنِينَ خَصِيمًا (النساء: 105)

Surely We have revealed the Book to thee with truth that thou may judge between people by means of what Allah has taught thee. And do not be an advocate for those who breach trust.

It is agreed that the occasion of the revelation of the above-given verse was a dispute between a Jew and 'Ibn Ubairiq (probably a hypocrite) committed theft in the house of Rifa'ah, and deposited the stolen property with a Jew. When asked about the theft, he attributed the theft to the Jew from whose possession the stolen property was recovered. Rifa'ah the victim of the theft, and his family were accusing Ibn Ubairiq, the real culprit. Since the property was recovered from the Jew, and some of its traces were found all the way from the house of Rifa'ah to the house of the Jew, (Which were artificially created by the culprit) the Holy Prophet (PBUH) was, in the beginning, inclined to hold the Jew guilty. He also reprimanded Rifa'ah for accusing Ibn Ubairiq.

The present verses were revealed to disclose the real facts. The Jew was accordingly acquitted, and Ibn Ubairiq was convicted. But he managed to escape to Makkah, and after joining the infidels died in a miserable condition.

Thus, the verse lays down that dishonesty must be punished, and the balance of justice must be held equal between friends and foes and between Muslims and non-Muslims.

The Prophet was known for his fair and impartial administration of justice. Along with Muslims, non-Muslims would also come to him for settlement of their disputes and he would adjudicate in accordance with their laws. He strictly observed the Quranic instructions regarding equality before law, and never made any distinction between litigants on the basis of religion or relations.

The Quran says:

يَا أَيُّهَا الَّذِينَ آمَنُوا كُونُوا قَوَّامِينَ بِالْقِسْطِ شُهَدَاءَ لِلَّهِ وَلَوْ عَلَىٰ أَنْفُسِكُمْ أَوِ الْوَالِدِينَ وَالْأَقْرَبِينَ ۚ إِن يَكُنْ غَنِيًّا أَوْ فَقِيرًا فَاللَّهُ أَوْلَىٰ بِهِمَا ۚ فَلَا تَتَّبِعُوا الْهَوَىٰ أَنْ تَعْدِلُوا ۚ وَإِنْ تَلَوَّا أَوْ تَعْرِضُوا فَإِنَّ اللَّهَ كَانَ بِمَا تَعْمَلُونَ خَبِيرًا (النساء: 135)

O you! who believe, be maintainers of justice, bearers of witness for Allah, even though it be against your own selves or (your) parents or near relatives. Whether he be rich or poor, Allah is better caretaker of both. So do not follow desires, lest you may avoid justice. And if you distort or turn away (from truth), surely Allah is ever Aware of what you do.

يَا أَيُّهَا الَّذِينَ آمَنُوا كُونُوا قَوَّامِينَ لِلَّهِ شُهَدَاءَ بِالْقِسْطِ ۚ وَلَا يَجْرِمَنَّكُمْ شَنَاٰنُ قَوْمٍ عَلَىٰ أَلَّا تَعْدِلُوا ۚ إِعْدِلُوا ۚ هُوَ أَقْرَبُ لِلتَّقْوَىٰ ۚ وَاتَّقُوا اللَّهَ ۚ إِنَّ اللَّهَ خَبِيرٌ بِمَا تَعْمَلُونَ (المائدة: 8)

O you! who believe, be upright for Allah, bearers of witness with justice; and not let hatred of a people incite you not to act equitably. Be just; that is nearer to observance of duty. And keep your duty to Allah. Surely Allah is aware of what you do.

The extent to which impartiality is expected of a judge is also well illustrated in the story concerning Caliph Umar. He once had a lawsuit against a Jew. When both parties went before the judge, the latter rose in his seat out of deference to Umar. Umar looked upon this act of deference to one party as an unpardonable judicial weakness.

4. Judicial independence

In Islamic legal system, judiciary is independent of executive control. Judges can perform their functions without any interference and none can influence the course of justice with his authority or wealth. The following portion of a letter that was written by Caliph Ali to one of his governors, excellently explains the notion of independence of judiciary in Islam:

Select for your Chief Judge one from the people who by far is the best among them; one who is not obsessed with domestic worries; one who cannot be intimidated; one who does not err too often; one who does not turn back from the right path once he finds it; one who is not self centered or avaricious; one who will not decide before knowing full facts; one who will weigh with care every attendant doubt and pronounce a clear verdict after taking everything into full consideration; one who will not grow restive over the arguments of advocates; one who will examine with patience every new disclosure of facts; one who will be strictly impartial in his decision; one whom flattery cannot mislead; one who does not exult over his position.¹⁴⁷ But it is not easy to find such men... Once you have selected the right man for the office, pay him handsomely enough to let him live in comfort and in keeping with his position, enough to keep him above temptations. Give him a position in your court so high that none can even dream of coveting it, and so high that neither backbiting nor intrigue can touch him.¹⁴⁸

Since law, in Islam, stands at the apex of social organization, those who administer the law must likewise be elevated and kept free of all executive control.

5. Free administration of justice

In Islamic legal system, justice is administered free of cost. All citizens, regardless of their financial status, can get justice without incurring any expenses in the form of court fee, stamp duty, etc.

Conclusion

In Islam, the concept of justice is more comprehensive, vital, and sacred than in any other system of life. It is one of the fundamental objectives of the Islamic state to provide justice. Not only justice is considered to be a trust, a sacred responsibility, which is to be performed in conformity with the provisions of the Quran and the Sunnah; but the dispensation of justice also constitutes one of the most important acts of devotion.

LEGISLATIVE SYSTEM OF ISLAAM

Definition of Legislation

"Legislation (or 'statutory law') is law which has been promulgated (or 'enacted') by a legislature or other governing body, or the process of making it."

Before an item of legislation becomes law it may be known as a bill, and may be broadly referred to as "legislation" while it remains under consideration to distinguish it from other business. Legislation can have many purposes: to regulate, to authorize, to proscribe, to provide (funds), to sanction, to grant, to declare or to restrict.

The responsibility for the administration of the Government in an Islamic state is entrusted to an Amir (leader) who may be likened to the President or the Prime Minister in a Western democratic state. All adult men and women who accept the fundamentals of the constitution are entitled to vote in the election for the leader.

The basic qualifications for the election of an Amir are that he should command the confidence of the largest number of people in respect of his knowledge and grasp of the spirit of Islam; he should possess the Islamic attribute of fear of Allah; he should be endowed with the quality of statesmanship. In short, he should be both able and virtuous.

SHURA

A Shura (consultative council), elected by the people, will assist and guide the Amir. It is obligatory for the Amir to administer the country with the advice of his Shura. The Amir can retain office only so long as he enjoys the confidence of the people, and must resign when he loses this confidence. Every citizen has the right to criticize the Amir and his Government, and all responsible means for the expression of public opinion should be available.

Legislation in an Islamic state should be within the limits prescribed by the Shariah. The injunctions of Allah and His Prophet are to be accepted and obeyed and no legislative body can alter or modify them or make any new laws which are contrary to their spirit. The duty of ascertaining the real intent of those commandments which are open to more than one interpretation should devolve on people possessing a specialized knowledge of the law of Shari'ah. In Islam the judiciary is not placed under the control of the executive. It derives its authority directly from the Shari'ah and is answerable to Allah. The judges will obviously be appointed by the Government but, once appointed, will have to administer justice impartially according to the law of Allah. All the organs and functionaries of the Government should come within their jurisdiction; even the highest executive authority of the Government will be liable to be called upon to appear in a court of law as a plaintiff or defendant. Rulers and ruled are subject to the

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same law and there can be no discrimination on the basis of position, power or privilege. Islam stands for equality and scrupulously adheres to this principle in the social, economic and political realms alike.

Islam and Ethics



Islamic system of Ethics

Ethics:

Ethics is English synonym of Akhlāq which is an Arabic word in plural form of Khulq which means good habit.

Concept of good & evil:

According to Islamic education, concept of good (Khair) is concerned with Qur'an and Sunnah. The fountainhead of good is Allah (Subhanahu wa ta'aala) as Allah is ever good and likes good deeds while evil (Sharr) although is created by Allah but it is followed first by Satan and then by those who are the followers of Satan. As Allah said, *"And do not follow the footsteps of Satan, surely, he is an open enemy of yours. He commands you to do evil and immodest acts and that you ascribe to Allah what you do not know"*. (Al-Baqarah: 168, 169) So, the fountainhead of evil is Satan.

Concept of Ma'roof & Munkar:

Ma'roof is an Arabic word which means fair, approved and lawful, while Munkar means unfair, disliked and unlawful.

Everything that is ordered or is permissible by Allah and His Messenger is Fair (Ma'roof) and everything forbidden and impermissible by Allah and His Messenger is Unfair (Munkar).

Source of ethical values:

Al-Qur'an and Sunnah.

The holy Prophet has stated the foremost purpose of his being sent down in this world and the method of his call to the people in these words:

"I have been sent only for the purpose of perfecting good morals."

(Al-Muata)

That great message which has left an indelible impression on the history of life, and for propagating which and for bringing people under whose influence Prophet Muhammed (p.b.u.h.) worked ceaselessly. Its purpose was nothing else but to strengthen the moral character of the people so that the world of beauty and perfection may be illuminated before their eyes and they may try to achieve it consciously and with knowledge. All the Islamic compulsory forms of worship are designed as exercises and training to enable people to acquire correct morals and habits and to live righteously, and to adhere to these virtues till the end, whatever be the changes in their circumstances.

Principles of morality:

According to Qur'an and Sunnah, the concept of morality in Islam is just to follow the directions of Qur'an and Sunnah. If Islam bids to do something, just doing it is called as ethics. If Islam forbids from something, to refrain from it is called as ethics.

References:

وَالَّذِينَ مَعَهُ أَشِدَّاءُ عَلَى الْكُفَّارِ رُحَمَاءُ بَيْنَهُمْ (الفتح: 29)

And those who are with him (Mohammad, the messenger of Allah) are hard on the disbelievers, compassionate among themselves.

مَا مِنْ شَيْءٍ يُوضَعُ فِي الْمِيزَانِ أَثْقَلَ مِنْ حُسْنِ الْأَخْلَاقِ (ترمذی)

There will be nothing heavier put in The Balance more than good ethics.

إِنَّ الرَّجُلَ لَيَذُرُّكَ بِحُسْنِ خُلُقِهِ دَرَجَةً قَائِمِ اللَّيْلِ وَصَائِمِ النَّهَارِ (ابوداود)

Surely, a man can achieve by his good ethics the status of one who performs Salah whole night long and keeps fasts whole day long.

The prophet (PBUH) said:

"By God, he cannot be a Momin; by God, he cannot be a Momin; by God, he cannot be a Momin. He was asked: 'who' He answered: 'He from whose misdeeds his neighbour is not safe.' (Bukhari)

The prophet (PBUH) said:

"A person who believes in Allah and the Here after should speak about good things or else should keep quiet." (Bukhari)

The prophet (PBUH) said:

"One person asked the Prophet: 'O Messenger of Allah a certain woman is very famous for her prayers, fasting and many charities, but she talks rudely with her neighbours. Tell me, what will be her fate?' He replied that she would go to Hell. Then that person asked: 'O Messenger of Allah! Another woman does not do much by way of prayers and fasting; gives pieces of cheese in charity and does not harm her neighbours.' He replied: 'She is of the Paradise.'" (Musnad Ahmad)

Usama bin Shareek says:

"We were sitting in the presence of the Messenger of Allah so quietly as if birds were perched on our heads. Nobody had the courage to open his mouth. In the meanwhile some people came and asked: 'Amongst the slaves of God who is the dearest to Him.' The Prophet replied: 'One who has the best moral character.'" (Ibn Hibban)